



APRIL 22, 2026

COMMITTEE OF THE WHOLE MEETING B

AGENDA

Date: Wednesday April 22, 2026
Time: 6:00 PM
Location: 108 E. Green Street Ithaca NY 14850
Watch Online: <https://www.youtube.com/@CityofIthacaPublicMeetings>

- 1. Call To Order (10 Min)**
 - 1.1. Emergency Evacuation Notice
 - 1.2. Agenda Review
 - 1.3. Approval of Minutes: 3-11-26 CC Spc Meeting, 3-18-26 COW B Meeting
- 2. Petitions and Hearings of Persons Before Council (30 Min)**
 - 2.1. Statements From The Public
- 3. Department Overview (20 Min)**
 - 3.1. Ithaca Youth Bureau- Introduction to Council
- 4. Finance & Administration (50 Min)**
 - 4.1. [City Council Code of Conduct](#)
 - 4.2. [Home Rule Request- School Speed Zone](#)
 - 4.3. [Home Rule Request- Red Light Cameras](#)
- 5. Intergovernmental Relations (50 Min)**
 - 5.1. [Renewal of Joint Ithaca-Tompkins SRT Mutual Aide Assistance](#)
 - 5.2. [Drug Task Force Mutual Aid and Intermunicipal Cooperation Agreement](#)
- 6. City Manager Report- Questions From Council (30 Min)**
 - 6.1. [City Manager's Monthly Report- April 2026](#)
- 7. Reports From City Staff**
- 8. Reports From Committee/Commissions**
- 9. Meeting Wrap-Up (60+ Min)**
 - 9.1. [Executive Session](#)

Public Comment

The public can provide short statements during this portion of the meeting. 3 minutes is the maximum time allotted, but the chair reserves the right to modify the amount of time per individual at the start of the meeting.

Only the first hour of the meeting is set aside for Public Comment. Groups of 3 or more speakers **are allotted more speaking time.**

For Longer Speaking Time - Multiple speakers on the same topic can speak as a group with one Designated Speaker to represent the Group. This will give you more time to share your thoughts and concerns during the Public Comment Forum.

3-4 Persons with One Designated Speaker - Allotted 5 minutes

5 or More Persons with One Designated Speaker - Allotted 7 minutes

Can't Come to the Meeting but still want to speak?

Register to Speak Virtually - [Click Here To Register](#)

Attending the Meeting to Speak in Person? Pre-Registration Not Required

Comment Cards are provided to those who attend in person. Once you have filled out your Comment Card, please hand your card to the Clerk. Your name will be called to speak in the order the cards are received.

Please Note Comment Cards will be accepted up until the Public Comment Forum begins or a maximum of 30 speakers, whichever comes first. Once we have reached a maximum of 30 speakers, you can submit your comment using the Written Comment Link Below.

Want to Submit a Comment and Not Speak in Person?

To Submit Written Comments - [Click Here To Submit Written Comment](#)

*Written comments submitted will be compiled and entered into the record.



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Common Council
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: COMMITTEE OF THE WHOLE MEETING B
FROM: Alderperson Sewell
DATE: April 22, 2026
RE: City Council Code of Conduct
ITEM #: 4.1

ATTACHMENTS:

[Code of Conduct Complete Resolution.pdf](#)

A RESOLUTION ADOPTING A CITY COUNCIL CODE OF CONDUCT

WHEREAS, at the January 14th Committee of the Whole Meeting, a Code of Conduct Working Committee was formed to develop a comprehensive and sensible code of conduct in accordance with Council's Rules of Procedures; and

WHEREAS, Common Council is entrusted by its residents with the authority to govern in a manner that is honest, transparent, and accountable; and

WHEREAS, the effective functioning of local government depends upon the confidence and trust of the public in the integrity of its elected officials; and

WHEREAS, it is the duty of each Council Member to exercise their authority in the best interest of all residents, free from personal gain, conflicts of interest, or inappropriate influence that would compromise the public good; and

WHEREAS, respectful and constructive deliberation among Council Members, City staff, and members of the public is essential to sound governance and informed decision-making; and

WHEREAS, the City Council desires to establish clear, written standards of conduct to guide the behavior of its members in the performance of their official duties and in their interactions with one another, with City staff, and with the public; and

WHEREAS, the adoption of a Code of Conduct serves to protect the integrity of the Council as an institution and to affirm the Council's commitment to ethical, equitable, and professional public service;

NOW, THEREFORE, BE IT RESOLVED by the Common Council of the City of Ithaca that the Council Code of Conduct and Rules of Procedure as attached in appendix A and B respectively are hereby adopted and shall take effect immediately upon adoption of this resolution; and

BE IT FURTHER RESOLVED, The Code of Conduct is intended to be consistent with, and operate in conjunction with, the City's Rules of Procedure, Code of Ethics, Open Meetings Law, and all other applicable state and local laws; and

BE IT FURTHER RESOLVED, Each Council member shall acknowledge receipt of the Code of Conduct, and compliance with its provisions is a continuing obligation for the duration of a member's service, including post-service confidentiality obligations as outlined in the Code; and

BE IT FURTHER RESOLVED, that the City Clerk is directed to maintain the Code of Conduct as an official Council policy and make it available to Council members and the public as appropriate.

Appendix A: City Council Code of Conduct

I. Purpose and Guiding Principles

The purpose of this Code of Conduct is to ensure that the City Council conducts the public's business in a manner that is lawful, ethical, respectful, transparent, and consistent with the Council's adopted Rules of Procedure.

Council members are expected to:

1. Act in the best interests of the City as a whole.
2. Respect the democratic process and the role of public participation.
3. Maintain professionalism, civility, and respect towards fellow elected officials, City staff, and the public.
4. Uphold the integrity of City government and public trust.
5. Recognize their role within the larger City government, and the weight with which their actions and speech are interpreted by staff and the public. As such, their adherence to City policies and procedures and to this Code of Conduct is imperative.

II. Applicability

This Code applies to all members of the City Council, including the Mayor when acting as a member of Council, during:

- Common Council meetings and committee meetings
- Committee of the Whole, Study Sessions, and Work Sessions
- Executive sessions
- Interactions with City staff
- Communications related to City business

III. Procedural Compliance

In addition to compliance with the Open Meetings Law, Council members shall comply with the adopted **Rules of Procedure**, including rules governing:

- Meetings, agendas, and notice
- Quorum and voting
- Order of business
- Public comment
- Committee structure and authority
- Appeals of rulings of the Chair

IV. Respectful Conduct and Decorum

1. Council members shall conduct themselves with courtesy, dignity, and respect in their role as public officers toward:
 - Other Council members
 - City staff
 - Boards and commissions
 - Members of the public
 - Public officials of other entities
2. Personal attacks, harassment, intimidation, threats, insults, or abusive conduct are prohibited.
3. Respectful disagreements shall be focused on policy and substance, not personality.
4. Council members shall adhere to the standards of order and decorum enforced by the Chair, subject to appeal as provided in the Rules of Procedure Section III.b.
5. Council members must speak honestly and accurately.
6. Council members are expected to utilize the information provided to them by City staff and one another and come to meetings informed and prepared for sincere engagement.

V. Conduct During Meetings

1. Council members shall speak only when recognized by the Chair and shall not interrupt others except to raise a point of order or point of information.
2. Council members shall respect time limits and the established order of business.
3. Council members shall refrain from conduct that disrupts meetings, including side conversations or electronic distractions.
4. Council members shall respect rulings of the Chair unless formally appealed.
5. As with all interactions as a public official, Council members must conduct themselves in accordance with the standards enumerated in section IV, “Respectful Conduct and Decorum.”
6. Council members should pursue respectful disagreement, collaboration, and compromise to benefit the community as a whole and model a functioning democratic process through informed discussion.

VI. Public Comment and Public Interaction

1. Council members shall respect the public's right to comment as provided in the Rules of Procedure.
2. Council members shall not engage in debate with members of the public during public comment, except as permitted under the "Privilege of the Floor."
3. Council members shall not speak on behalf of Common Council in response to individual comments, except as specifically authorized to do so.
4. Members shall model respectful behavior toward speakers, even in the presence of criticism or disagreement

VII. Relationship with City Staff

1. Council members shall respect the professional role of City staff and the City Manager.
2. Members shall not direct or interfere with the day-to-day operations of City departments.
3. Requests for information shall be made in accordance with the communication protocols established in Rules of Procedure, Section XI (Communication and Correspondence by Council Members).
4. Criticism of staff performance shall be directed through appropriate channels and not made in public forums. A council member seeking to discuss a staff member's performance may do so within the environment of an executive session as authorized by law.
5. Council members must not solicit any type of political support (including but not limited to monetary contributions, display of political signs, signatures for petitions, etc.) from City staff while staff is working. Nothing in this provision prohibits City staff from supporting Council members as politicians on their personal time, away from the workplace, and as private citizens.

VIII. Use of Position and Resources

1. Council members shall not use their position for personal gain or to secure special privileges.
2. City letterhead, email, logos, and titles shall be used only as permitted by the Rules of Procedure.
3. Members shall clearly distinguish personal opinions from official Council positions in written and verbal statements and must not act as Council spokesperson without authorization to do so.

IX. Conflicts of Interest and Abstentions

1. Council members shall comply with all applicable state and local ethics and conflict-of-interest laws, including but not limited to the City's Code of Ethics.
2. Members shall disclose actual and perceived conflicts of interest when they arise.
3. Abstentions shall be limited to circumstances involving a conflict of interest, as provided in the Rules of Procedure Section I.d.2.
4. Council members must avoid circumstances in which their impartiality as a public official is compromised by their personal or professional interests.
5. Council members must avoid even the appearance of impropriety in their public duties.

X. Confidentiality and Executive Sessions

1. Council members shall maintain the confidentiality of matters lawfully discussed in executive session.
2. Executive sessions shall be held only for purposes authorized by law and in accordance with the Rules of Procedure.
3. Information obtained in executive session shall not be disclosed unless authorized by law or Council action.

XI. Enforcement and Accountability

1. Alleged violations of this Code shall be addressed through the Council's adopted **Procedures for Addressing Alleged Violations of Council Rules.**
2. Common Council may impose lawful corrective actions or sanctions, consistent with:
 - Due process
 - The Rules of Procedure
 - State and local law
3. Nothing in this Code limits the Council's authority to:
 - Preserve order and decorum during meetings
 - Refer matters to ethics boards or legal authorities
 - Initiate removal proceedings as permitted by law

XII. Acknowledgment and Continuing Obligation

1. Each Council member shall acknowledge receipt of this Code of Conduct.
2. This Code's obligations apply for the duration of a member's term of office. Members have a continuing duty to keep confidential any information they learned solely by virtue of their public position even after their service has ended.
3. This Code shall be reviewed periodically and may be amended in accordance with the Rules of Procedure.

Appendix B: City Council Code of Conduct

Who May File a Complaint

1. Any person may submit to any Council member a complaint which alleges a violation of the Common Council Rules of Procedure (“Rules”) by one or more Council members.

Form and Filing of Complaints

1. All complaints shall be submitted in writing, signed, and dated.
2. Complaints shall include:
 - The name of the Council member alleged to have violated the Rules
 - A clear description of the alleged misconduct
 - The specific section(s) of the Rules that were allegedly violated
 - The date(s), time(s), and location(s) of the alleged misconduct
 - Any supporting documentation or witness names, if available
3. Anonymous complaints shall not be accepted.
4. Complaints shall be filed with the city clerk.

Initial Review and Vetting

1. Within 10 business days of receipt, the City Clerk shall:
 - Confirm the complaint is complete
 - Forward the complaint to the Rules and Ethics Committee (“Committee”) for preliminary review
2. The Committee shall determine whether:
 - The complaint falls within the scope of the Rules
 - The allegations, if true, would constitute a violation
3. Complaints that are frivolous, duplicative, outside the scope of the Rules, or clearly political in nature may be dismissed with written explanation to the Complainant and accused Council member.
4. Complaints that are not dismissed shall proceed to a formal investigation by the Committee.

Formal Investigation

1. The Committee shall ensure the accused Council member receives:
 - Written notice of the allegations
 - The opportunity to submit a written response

- Reasonable time to prepare such a response
2. The investigation shall consist of a review of any submitted materials, an interview with any witnesses (including the Complainant) and an interview with the accused.
 3. The investigation shall be completed within 45 days, unless extended for good cause.

Findings and Recommendation

1. Upon completion of the investigation, a written report shall be prepared by the Committee summarizing:
 - Findings of fact
 - Whether a violation occurred
 - Reasons for determination as to the findings of fact
2. The report shall be provided to:
 - The accused Council member
 - The City Attorney
 - The Director of Human Resources
 - All Council members, subject to confidentiality laws

The Complainant will be provided with notice regarding the outcome of the investigation (namely, whether a determination was made that a violation occurred).

Council Review and Hearing

1. If the Committee determines that a violation has occurred, Council shall consider the matter at a hearing within a noticed meeting.
2. The accused Council member shall be entitled to:
 - Notice of the hearing
 - The opportunity to speak or submit a written statement along with any additional evidence
 - The right to be represented by counsel at their own expense
3. There shall be no requirement for the complainant to testify or be subjected to cross-examination at a hearing.
4. Council shall deliberate in accordance with applicable requirements under State open meetings law (including executive session requirements). The accused shall be recused from any executive session.
5. Within deliberations, Council will decide whether a rules violation has occurred. This decision requires a two-thirds ($\frac{2}{3}$) majority vote of all Council members, excluding the member under review.

Sanctions and Corrective Actions

1. If Council finds that a Rules violation has occurred, the City Attorney shall propose sanctions proportionate to the severity, frequency, and impact of the violation. Possible sanctions include, but are not limited to:

A. Optional Informal or Corrective Actions

- Verbal warning
- Written admonishment
- Mandatory training (ethics, civility, open meetings, etc.)

B. Optional Formal Council Actions

- Written reprimand
- Formal censure adopted by resolution
- Removal from committee assignments related to the misconduct
- Removal from leadership positions (i.e., deputy mayor)
- Limitation of privileges consistent with law (e.g., travel authorization, discretionary appointments)
- Abatement of pay (i.e., up to one pay period)
- Removal from office as permitted by law or charter

C. Optional Referral Actions

- Referral to a state or local ethics board
- Referral to law enforcement, if a crime
- Referral to other appropriate authorities

2. Any vote on sanctions shall require a majority vote of Council excluding the accused member.

Recordkeeping and Transparency

1. The Director of Human Resources shall maintain records of all complaints and outcomes where a finding of misconduct occurs, consistent with personnel recordkeeping.
2. Should misconduct not be found to have occurred, the complaint shall not be maintained in the accused's personnel file.
3. Dispositions shall be public to the extent permitted by law.
4. Dismissed complaints shall remain confidential unless otherwise required by law.
5. Where at all possible, the complainant's identity shall not be raised in public, and identifying information of the complainant shall not be made public during the hearing.

Communication to Individual Council Members

1. Neither accused nor Complainant may communicate with individual Council members regarding the alleged violation at any time after the complaint has been submitted outside of the investigation process.

Protection Against Retaliation

1. Retaliation against any person who files a complaint or participates in an investigation is prohibited.
2. Retaliation shall constitute a separate violation of the Council Rules of Procedure



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Attorney's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: COMMITTEE OF THE WHOLE MEETING B
FROM: City Attorney's Office
DATE: April 22, 2026
RE: Home Rule Request- School Speed Zone
ITEM #: 4.2

ATTACHMENTS:

[Home Rule Request School Speed Zone 05-06-2026.pdf](#)
[School Speed Zone - Assembly Home Rule.pdf](#)
[School speed Zone - Senate Home Rule.pdf](#)

RESOLUTION

WHEREAS, the Common Council unanimously passed a resolution on November 19, 2025, authorizing the Mayor to submit a home rule request in support of legislation in the New York State Assembly and New York State Senate that would authorize a Speed Safety Camera Demonstration Program in the City of Ithaca; and

WHEREAS, legislation to permit this change has been subsequently introduced as Assembly Bill A10454 and Senate Bill S9528; now therefore be it

RESOLVED, that the Mayor is authorized to request that the New York State Assembly and New York State Senate enact the legislation as previously introduced; and be it further

RESOLVED, that the Mayor or his designee is authorized to sign and submit any documentation or related paperwork that may be required to secure this home rule legislation and allow a Speed Safety Camera Demonstration Program in the City of Ithaca.

IMPORTANT: READ INSTRUCTIONS ON REVERSE SIDE
HOME RULE REQUEST
(Request by a Local Government for Enactment of a Special Law)

To the Legislature:

Pursuant to Article IX of the Constitution, the _____ of _____
(county, city, town or village)
_____ requests the enactment of _____ Senate _____ bill (no. _____),
(name) Assembly (strike out one)
entitled “_____”

It is hereby declared that a necessity exists for the enactment of such legislation, and that the facts establishing such necessity are as follows: (Check appropriate box)

- ☐ The local government does not have the power to enact such legislation by local law.
- ☐ Other facts, as set forth in the following “Explanation” establish such necessity.

EXPLANATION
(If space below is not sufficient, use separate sheet and attach here)

Such request is made by: (Check appropriate box)

- ☐ The chief executive officer of such local government, concurred in by a majority of the total membership of the local legislative body. (See paragraph A below)
- ☐ The local legislative body of such local government, at least two-thirds of the total membership thereof having voted in favor of such request. (See paragraph B below)

READ BEFORE SIGNING

A If the request is made by the chief executive officer and concurred in by a majority of the total membership of the local legislative body, *both* the chief executive officer *and* the clerk of the local legislative body must sign below. In such case use the word “majority” below even though the vote may have been greater.

B. If the request is made by the local legislative body, at least two-thirds of the total membership thereof having voted in favor of such request, *only* the clerk of the local legislative body must sign below. In such case use the words “two-thirds” below.

CHIEF EXECUTIVE OFFICER’S SIGNATURE

(Signed)_____ (chief executive officer)

(Print or type name below signature)
Date: _____, 20 _____

(Title of chief executive officer)

CLERK’S CERTIFICATION

I, _____, do hereby certify that I am Clerk of the _____
(print or type name) (local legislative body)
_____ of the _____
(county, city, town or village)
of _____ and that on the _____ day of _____,
(name)
20____, such legislative body, at least two-thirds a majority of the total membership having voted in favor thereof,
(strike out one)
approved the foregoing request.

(Signed)_____ (clerk)

(Print or type name below signature)
(SEAL OF LOCAL GOVERNMENT)
Date: _____, 20 _____

INSTRUCTIONS

Copies required:

Two signed copies of this form, specifying the final bill number and title must be filed with *each* House of the Legislature.

Examples:

- (a) If the bill has been introduced in only *one* House of the Legislature, four copies of the request form must be filed, i.e., two with the Senate and two with the Assembly.
- (b) If the identical bill has been introduced in *both* Houses, eight copies of the request form must be filed, i.e., two with the Senate and two with the Assembly for the Senate bill and the same for the Assembly bill.

Date of request:

The signing of a home rule request or the adoption of a resolution by the local legislative body approving such request cannot precede the date on which the bill is actually introduced in the Legislature. In the case of prefiled bills, the actual date of introduction is the first day of the legislative session. The request may be signed or the resolution adopted the same day as the date of introduction.

Amended bills:

Each time the bill is amended a new request must be filed (with the appropriate number of copies) and the new request must correctly identify the bill number as last amended. The signing of the request, and the date of the supporting resolution, cannot precede the date of the amendment.

Transmittal:

The signed forms should be sent as follows:

To the Senate:

Home Rule Counsel
Senate Post Office
208 Legislative Office Building
Albany, N. Y. 12247

To the Assembly:

Home Rule Counsel
Assembly Post Office
210 Legislative Office Building
Albany, N. Y. 12248

Definition of terms:

Chief executive officer.

In the case of a county, the elective or appointive chief executive officer, if there be one, or otherwise the chairman of the board of supervisors; in the case of a city or village, the mayor (not manager); and in the case of a town, the supervisor. (Municipal Home Rule Law §40)

Local legislative body.

The board of supervisors, board of aldermen, common council, council, commission, town board, board of trustees or other elective governing board or body vested by state statute, charter or other law with jurisdiction to initiate and adopt local laws or ordinances. (Municipal Home Rule Law §2)

Local government.

A county, city, town or village (Const. Art. IX, §3; Municipal Home Rule Law §2)

Special law

A state statute which in terms and in effect applies to one or more, but not all, counties (other than those wholly included within a city) cities, towns or villages. (Const. Art. IX §3; Municipal Home Rule Law §2)

Total membership.

The total voting power of a legislative body. (Municipal Home Rule Law, § 20, 40)

IMPORTANT: READ INSTRUCTIONS ON REVERSE SIDE
HOME RULE REQUEST
(Request by a Local Government for Enactment of a Special Law)

To the Legislature:

Pursuant to Article IX of the Constitution, the of
(county, city, town or village)
.....requests the enactment of ^{Senate}~~Assembly~~ bill (no.),
(name) (strike out one)
entitled “

.....”
It is hereby declared that a necessity exists for the enactment of such legislation, and that the facts establishing such necessity are as follows: (Check appropriate box)

- ☐ The local government does not have the power to enact such legislation by local law.
☐ Other facts, as set forth in the following “Explanation” establish such necessity.

EXPLANATION
(If space below is not sufficient, use separate sheet and attach here)

Such request is made by: (Check appropriate box)

- ☐ The chief executive officer of such local government, concurred in by a majority of the total membership of the local legislative body. (See paragraph A below)
☐ The local legislative body of such local government, at least two-thirds of the total membership thereof having voted in favor of such request. (See paragraph B below)

READ BEFORE SIGNING

A If the request is made by the chief executive officer and concurred in by a majority of the total membership of the local legislative body, *both* the chief executive officer *and* the clerk of the local legislative body must sign below. In such case use the word “majority” below even though the vote may have been greater.

B. If the request is made by the local legislative body, at least two-thirds of the total membership thereof having voted in favor of such request, *only* the clerk of the local legislative body must sign below. In such case use the words “two-thirds” below.

CHIEF EXECUTIVE OFFICER’S SIGNATURE

(Signed).....
(chief executive officer)
.....
(Print or type name below signature)
Date:, 20
.....
(Title of chief executive officer)

CLERK’S CERTIFICATION

I, , do hereby certify that I am Clerk of the
(print or type name) (local legislative body)
..... of the
(county, city, town or village)
ofand that on the..... day of ,
(name)
20____, such legislative body, at least ^{two-thirds}~~a majority~~ of the total membership having voted in favor thereof,
(strike out one)
approved the foregoing request.

(Signed).....
(SEAL OF LOCAL GOVERNMENT) (clerk)
.....
(Print or type name below signature)
Date:, 20

INSTRUCTIONS

Copies required:

Two signed copies of this form, specifying the final bill number and title must be filed with *each* House of the Legislature.

Examples:

- (a) If the bill has been introduced in only *one* House of the Legislature, four copies of the request form must be filed, i.e., two with the Senate and two with the Assembly.
- (b) If the identical bill has been introduced in *both* Houses, eight copies of the request form must be filed, i.e., two with the Senate and two with the Assembly for the Senate bill and the same for the Assembly bill.

Date of request:

The signing of a home rule request or the adoption of a resolution by the local legislative body approving such request cannot precede the date on which the bill is actually introduced in the Legislature. In the case of prefiled bills, the actual date of introduction is the first day of the legislative session. The request may be signed or the resolution adopted the same day as the date of introduction.

Amended bills:

Each time the bill is amended a new request must be filed (with the appropriate number of copies) and the new request must correctly identify the bill number as last amended. The signing of the request, and the date of the supporting resolution, cannot precede the date of the amendment.

Transmittal:

The signed forms should be sent as follows:

To the Senate:

Home Rule Counsel
Senate Post Office
208 Legislative Office Building
Albany, N. Y. 12247

To the Assembly:

Home Rule Counsel
Assembly Post Office
210 Legislative Office Building
Albany, N. Y. 12248

Definition of terms:

Chief executive officer.

In the case of a county, the elective or appointive chief executive officer, if there be one, or otherwise the chairman of the board of supervisors; in the case of a city or village, the mayor (not manager); and in the case of a town, the supervisor. (Municipal Home Rule Law §40)

Local legislative body.

The board of supervisors, board of aldermen, common council, council, commission, town board, board of trustees or other elective governing board or body vested by state statute, charter or other law with jurisdiction to initiate and adopt local laws or ordinances. (Municipal Home Rule Law §2)

Local government.

A county, city, town or village (Const. Art. IX, §3; Municipal Home Rule Law §2)

Special law

A state statute which in terms and in effect applies to one or more, but not all, counties (other than those wholly included within a city) cities, towns or villages. (Const. Art. IX §3; Municipal Home Rule Law §2)

Total membership.

The total voting power of a legislative body. (Municipal Home Rule Law, § 20, 40)



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Attorney's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: COMMITTEE OF THE WHOLE MEETING B
FROM: City Attorney's Office
DATE: April 22, 2026
RE: Home Rule Request- Red Light Cameras
ITEM #: 4.3

ATTACHMENTS:

[Home Rule Request Red Light Camera 05-06-2026.pdf](#)
[Red Light Camera - Senate Home Rule.pdf](#)
[Red Light Camera - Assembly Home Rule.pdf](#)

RESOLUTION

WHEREAS, the Common Council unanimously passed a resolution on November 19, 2025, authorizing the Mayor to submit a home rule request in support of legislation in the New York State Assembly and New York State Senate that would authorize a Red Light Camera Demonstration Program in the City of Ithaca; and

WHEREAS, legislation to permit this change has been subsequently introduced as Assembly Bill A10455 and Senate Bill S9527; now therefore be it

RESOLVED, that the Mayor is authorized to request that the New York State Assembly and New York State Senate enact the legislation as previously introduced; and be it further

RESOLVED, that the Mayor or his designee is authorized to sign and submit any documentation or related paperwork that may be required to secure this home rule legislation and allow a Red Light Camera Demonstration Program in the City of Ithaca.

IMPORTANT: READ INSTRUCTIONS ON REVERSE SIDE
HOME RULE REQUEST
(Request by a Local Government for Enactment of a Special Law)

To the Legislature:

Pursuant to Article IX of the Constitution, the of
(county, city, town or village)
.....requests the enactment of ^{Senate} bill (no.),
(name)Assembly(strike out one)
entitled “

.....”
It is hereby declared that a necessity exists for the enactment of such legislation, and that the facts establishing such necessity are as follows: (Check appropriate box)

- ☐ The local government does not have the power to enact such legislation by local law.
- ☐ Other facts, as set forth in the following “Explanation” establish such necessity.

EXPLANATION
(If space below is not sufficient, use separate sheet and attach here)

Such request is made by: (Check appropriate box)

- ☐ The chief executive officer of such local government, concurred in by a majority of the total membership of the local legislative body. (See paragraph A below)
- ☐ The local legislative body of such local government, at least two-thirds of the total membership thereof having voted in favor of such request. (See paragraph B below)

READ BEFORE SIGNING

A If the request is made by the chief executive officer and concurred in by a majority of the total membership of the local legislative body, *both* the chief executive officer *and* the clerk of the local legislative body must sign below. In such case use the word “majority” below even though the vote may have been greater.

B. If the request is made by the local legislative body, at least two-thirds of the total membership thereof having voted in favor of such request, *only* the clerk of the local legislative body must sign below. In such case use the words “two-thirds” below.

CHIEF EXECUTIVE OFFICER’S SIGNATURE

(Signed).....
(chief executive officer)

.....
(Print or type name below signature)

Date:, 20
(Title of chief executive officer)

CLERK’S CERTIFICATION

I, , do hereby certify that I am Clerk of the
(print or type name)(local legislative body)
..... of the
(county, city, town or village)
ofand that on the..... day of ,
(name)
20____, such legislative body, at least ^{two-thirds} of the total membership having voted in favor thereof,
a majority(strike out one)
approved the foregoing request.

(SEAL OF LOCAL GOVERNMENT)

(Signed).....
(clerk)

.....
(Print or type name below signature)

Date:, 20

INSTRUCTIONS

Copies required:

Two signed copies of this form, specifying the final bill number and title must be filed with *each* House of the Legislature.

Examples:

- (a) If the bill has been introduced in only *one* House of the Legislature, four copies of the request form must be filed, i.e., two with the Senate and two with the Assembly.
- (b) If the identical bill has been introduced in *both* Houses, eight copies of the request form must be filed, i.e., two with the Senate and two with the Assembly for the Senate bill and the same for the Assembly bill.

Date of request:

The signing of a home rule request or the adoption of a resolution by the local legislative body approving such request cannot precede the date on which the bill is actually introduced in the Legislature. In the case of prefiled bills, the actual date of introduction is the first day of the legislative session. The request may be signed or the resolution adopted the same day as the date of introduction.

Amended bills:

Each time the bill is amended a new request must be filed (with the appropriate number of copies) and the new request must correctly identify the bill number as last amended. The signing of the request, and the date of the supporting resolution, cannot precede the date of the amendment.

Transmittal:

The signed forms should be sent as follows:

To the Senate:

Home Rule Counsel
Senate Post Office
208 Legislative Office Building
Albany, N. Y. 12247

To the Assembly:

Home Rule Counsel
Assembly Post Office
210 Legislative Office Building
Albany, N. Y. 12248

Definition of terms:

Chief executive officer.

In the case of a county, the elective or appointive chief executive officer, if there be one, or otherwise the chairman of the board of supervisors; in the case of a city or village, the mayor (not manager); and in the case of a town, the supervisor. (Municipal Home Rule Law §40)

Local legislative body.

The board of supervisors, board of aldermen, common council, council, commission, town board, board of trustees or other elective governing board or body vested by state statute, charter or other law with jurisdiction to initiate and adopt local laws or ordinances. (Municipal Home Rule Law §2)

Local government.

A county, city, town or village (Const. Art. IX, §3; Municipal Home Rule Law §2)

Special law

A state statute which in terms and in effect applies to one or more, but not all, counties (other than those wholly included within a city) cities, towns or villages. (Const. Art. IX §3; Municipal Home Rule Law §2)

Total membership.

The total voting power of a legislative body. (Municipal Home Rule Law, § 20, 40)

IMPORTANT: READ INSTRUCTIONS ON REVERSE SIDE
HOME RULE REQUEST
(Request by a Local Government for Enactment of a Special Law)

To the Legislature:

Pursuant to Article IX of the Constitution, the of
(county, city, town or village)
.....requests the enactment of ^{Senate}~~Assembly~~ bill (no.),
(name) (strike out one)
entitled “

.....”
It is hereby declared that a necessity exists for the enactment of such legislation, and that the facts establishing such necessity are as follows: (Check appropriate box)

- ☐ The local government does not have the power to enact such legislation by local law.
☐ Other facts, as set forth in the following “Explanation” establish such necessity.

EXPLANATION
(If space below is not sufficient, use separate sheet and attach here)

Such request is made by: (Check appropriate box)

- ☐ The chief executive officer of such local government, concurred in by a majority of the total membership of the local legislative body. (See paragraph A below)
☐ The local legislative body of such local government, at least two-thirds of the total membership thereof having voted in favor of such request. (See paragraph B below)

READ BEFORE SIGNING

A If the request is made by the chief executive officer and concurred in by a majority of the total membership of the local legislative body, *both* the chief executive officer *and* the clerk of the local legislative body must sign below. In such case use the word “majority” below even though the vote may have been greater.

B. If the request is made by the local legislative body, at least two-thirds of the total membership thereof having voted in favor of such request, *only* the clerk of the local legislative body must sign below. In such case use the words “two-thirds” below.

CHIEF EXECUTIVE OFFICER’S SIGNATURE

(Signed).....
(chief executive officer)
.....
(Print or type name below signature)
Date:, 20
.....
(Title of chief executive officer)

CLERK’S CERTIFICATION

I, , do hereby certify that I am Clerk of the
(print or type name) (local legislative body)
..... of the
(county, city, town or village)
ofand that on the..... day of ,
(name)
20____, such legislative body, at least ^{two-thirds}~~a majority~~ of the total membership having voted in favor thereof,
(strike out one)
approved the foregoing request.

(Signed).....
(SEAL OF LOCAL GOVERNMENT) (clerk)
.....
(Print or type name below signature)
Date:, 20

INSTRUCTIONS

Copies required:

Two signed copies of this form, specifying the final bill number and title must be filed with *each* House of the Legislature.

Examples:

- (a) If the bill has been introduced in only *one* House of the Legislature, four copies of the request form must be filed, i.e., two with the Senate and two with the Assembly.
- (b) If the identical bill has been introduced in *both* Houses, eight copies of the request form must be filed, i.e., two with the Senate and two with the Assembly for the Senate bill and the same for the Assembly bill.

Date of request:

The signing of a home rule request or the adoption of a resolution by the local legislative body approving such request cannot precede the date on which the bill is actually introduced in the Legislature. In the case of prefiled bills, the actual date of introduction is the first day of the legislative session. The request may be signed or the resolution adopted the same day as the date of introduction.

Amended bills:

Each time the bill is amended a new request must be filed (with the appropriate number of copies) and the new request must correctly identify the bill number as last amended. The signing of the request, and the date of the supporting resolution, cannot precede the date of the amendment.

Transmittal:

The signed forms should be sent as follows:

To the Senate:

Home Rule Counsel
Senate Post Office
208 Legislative Office Building
Albany, N. Y. 12247

To the Assembly:

Home Rule Counsel
Assembly Post Office
210 Legislative Office Building
Albany, N. Y. 12248

Definition of terms:

Chief executive officer.

In the case of a county, the elective or appointive chief executive officer, if there be one, or otherwise the chairman of the board of supervisors; in the case of a city or village, the mayor (not manager); and in the case of a town, the supervisor. (Municipal Home Rule Law §40)

Local legislative body.

The board of supervisors, board of aldermen, common council, council, commission, town board, board of trustees or other elective governing board or body vested by state statute, charter or other law with jurisdiction to initiate and adopt local laws or ordinances. (Municipal Home Rule Law §2)

Local government.

A county, city, town or village (Const. Art. IX, §3; Municipal Home Rule Law §2)

Special law

A state statute which in terms and in effect applies to one or more, but not all, counties (other than those wholly included within a city) cities, towns or villages. (Const. Art. IX §3; Municipal Home Rule Law §2)

Total membership.

The total voting power of a legislative body. (Municipal Home Rule Law, § 20, 40)



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Police Department
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: COMMITTEE OF THE WHOLE MEETING B
FROM: Police Chief Thomas Kelly
DATE: April 22, 2026
RE: Renewal of Joint Ithaca-Tompkins SRT Mutual Aide Assistance
ITEM #: 5.1

This is a renewal of our current partnership with the Tompkins County Sheriff's Office. NYS accreditation gives preference to multi-jurisdictional teams. NYS sets high training standards and certifications to professionalize emergency response. The Ithaca Police Department and Tompkins County Sheriff's Office recognize that certain criminal acts or threats are more effectively dealt with by a specially trained team than standard police operations. The training and experience SRT members receive also benefits the community and lead to safer outcomes for everyone.

ATTACHMENTS:

[Work Session Memo to Council - MOU on SRT \(041626\).pdf](#)
[Resolution - Intermunicipal Agreement \(SRT\).pdf](#)
[2025 Joint Ithaca-Tompkins SRT IMA 2025-2027 \(clean\).pdf](#)
[2025 Joint Ithaca-Tompkins SRT IMA 2025-2027 \(redline\) \(1\).docx](#)



MEMORANDUM

Date: April 16, 2026

To: Common Council

From: Catherine Muskin, Acting City Attorney; Police Chief Thomas Kelly

RE: Approval of Intermunicipal Agreement, Ithaca-Tompkins SRT

EXECUTIVE SUMMARY

New York State General Municipal Law (“GML”) § 119-o permits municipal corporations such as the City of Ithaca (the “City”) to enter into agreements—called intermunicipal agreements for short—for the performance amongst themselves or for the other of their respective functions, powers, and duties on a cooperative or contract basis or for the provision of a joint service. Simultaneously, under GML § 209-m, a municipality may request assistance from a nearby law enforcement agency. The proposed intermunicipal agreement between the City and Tompkins County develops a Specialized Response Team (“SRT”) which allows for specialized training for specific scenarios for intermunicipal response, as permitted by GML § 209-m.

GML § 119-o requires the approval of any intermunicipal agreement by each municipality’s legislative body.

PROJECT HISTORY, BACKGROUND, & ANALYSIS

The proposed intermunicipal agreement between IPD and Tompkins County Sheriff (the “Agreement”) establishes an intergovernmental SRT that can be deployed during an emergency OR non-emergency nature to fulfill a mutual aid request. The Agreement provides additional detail for the non-emergency basis, indicating it would be “prearranged training exercises and programs as well as temporary assignment of law enforcement officers and/or equipment to another law enforcement agency for training or patrol purposes where the officers and/or equipment may be involved in police intervention situations.” Other pertinent terms include the following:

- **Response/Control:** The obligation to render mutual aid is voluntary: IPD retains control over its personnel and equipment in the sole discretion of the Police Chief (or his designee). Each party may recall loaned personnel or equipment at any time. (Section 3)
- **Command Structure:** During incidents within the City, the Incident Commander will be within the IPD; for incidents within the County but outside of the City, the Sheriff’s Office will be Incident Commander. (Section 4)
- **Liability:** There is a mutual release of liability for all participating parties. (Section 5)



CITY OF ITHACA | WORK SESSION MEMO

- **Cost:** Each participating agency bears its own costs for compensation, pension, disability, and any other costs. (Section 5)
- **Cooperation:** Each party will have access to the incident reports created by the other party related to the SRT; both parties also agree to participate in any relevant investigation or review and make relevant information available. (Section 7)
- **Term:** The proposed term is through December 31, 2027; the maximum term under GML §119-n(2)(j) is a five (5)-year term.

POLICY ALIGNMENT STATEMENT

This Agreement aligns with the Council’s legislative priority of “Public Safety” by expanding the potential personnel and equipment available for these operations, “strengthen[ing] coordination and communication . . . to ensure effective, equitable, and timely emergency responses.”

QUESTIONS FOR COUNCIL

BUDGET IMPLICATIONS & FUNDING

There is no cost to this Agreement, as outlined above.

PUBLIC FEEDBACK

NEXT STEPS

Once this Agreement is ratified by the Council, it may be executed by Chief Kelly as the Department Head and Acting City Manager Recckio.

**RESOLUTION TO APPROVE INTERMUNICIPAL AGREEMENT
WITH TOMPKINS COUNTY FOR SPECIALIZED RESPONSE TEAM**

WHEREAS, local governments are authorized to request and provide police assistance to each other pursuant to New York General Municipal Law (“GML”) § 209-m; and

WHEREAS, the temporary exchange of law enforcement officer and equipment for the purpose of mutual assistance is further contemplated by GML § 209-m; and

WHEREAS, Article 5-G of the GML authorizes municipal corporations to enter into agreements for the performance of their respective functions, powers, and duties on a cooperative or contract basis or for the provision of a joint service; and

WHEREAS, the City and Tompkins County have come to terms on an agreement to establish a joint Specialized Response Team; and

WHEREAS, GML § 119-o requires approval of any intermunicipal agreement by a legislative body;

NOW, THEREFORE, the Common Council hereby resolves as follows:

1. The proposed agreement between Tompkins County and the City of Ithaca, “Joint Ithaca-Tompkins Specialized Response Team Mutual Aid Assistance and Intermunicipal Agreement,” is approved.
2. The City Attorney is authorized to take all necessary steps to finalize and execute the proposed agreement, and to have the City Manager sign on behalf of the City.

JOINT ITHACA-TOMPKINS SPECIALIZED RESPONSE TEAM MUTUAL AID ASSISTANCE AND INTERMUNICIPAL AGREEMENT

THIS AGREEMENT made this ____ day of _____, 2026, by and between the County of Tompkins ("County"), a municipal corporation with offices located at 125E. Court Street, Ithaca, New York, and the City of Ithaca ("City"), a municipal corporation with offices located at 108 E. Green Street, Ithaca, New York (each a "local government " or collectively, "local governments.")

WHEREAS local governments are authorized to request and provide police assistance to each other pursuant to New York General Municipal Law ("GML") Section 209-m, and

WHEREAS the temporary exchange of law enforcement officer and equipment for the purpose of mutual assistance is further contemplated by Section 209- m, and

WHEREAS Article 5-G of the GML authorizes municipal corporations to enter into agreements for the performance of their respective functions, powers, and duties on a cooperative or contract basis or for the provision of a joint service, and

WHEREAS Article 5-G provides that such agreements may extend the appropriate territorial jurisdiction of the participants necessary to fulfill said service, and allow personnel assigned to a joint service to possess the same power, duties, immunities, and privileges they would ordinarily possess if they performed them in the area where they are employed, and

WHEREAS GML Section 209-m, New York Criminal Procedure Law Sections 140.10(1) & (3) 120.60 et seq., and 690.25 and other applicable authority authorize law enforcement officers to exercise certain police powers and authorities outside their geographic area of employment when a request for assistance is forthcoming from another law enforcement agency, and

WHEREAS each party has authority to operate a Specialized Response Team to respond to certain criminal acts or threats that are more effectively dealt with by a specially trained tactical team than standard police operations, and

WHEREAS the parties have determined that it is in the best interests of the respective communities and of mutual advantage to enter into this agreement for the provision of interagency law enforcement services, and

WHEREAS the New York State Law Enforcement Accreditation Program has requested that the parties enter into an agreement formalizing the operation of the joint Specialized Response Team;

NOW THEREFORE, pursuant to the above considerations and the covenants and mutual benefits contained in this Agreement, the parties agree as follows:

1. Purpose. The parties recognize that certain criminal acts or threats are more effectively dealt with by a specially trained tactical team than standard police operations, and that in such situations the use of law enforcement officers to perform law enforcement duties and the use of law enforcement equipment and supplies outside the territory of the local government where the officers are legally employed may be desirable and necessary. The objectives of this Agreement are:
 - a. the more effective and efficient use of law enforcement resources and services in responding to law enforcement intervention situations;
 - b. an enhanced degree of cooperation between the Ithaca Police Department ("IPD"), and the Tompkins County Sheriff's Office;
 - c. the maintenance of a joint Specialized Response Team ("SRT") composed of resources from and available to the Sheriff's Office, and IPD;
 - d. the development and use of training exercises or programs where skills, knowledge, procedures, and expertise are shared by the parties;
 - e. the adoption of rules and regulations providing for a single team commander and team leaders, a single set of standard operational procedures, training, records maintenance, and the fiscal responsibilities of each agency; and
 - f. The elimination of the need to follow the formal procedure set forth in GML Section 209-m as applied to requests for assistance from the other party in the form of personnel and/or equipment as part of SRT activation.
2. Authorization. Intergovernmental SRT service and assistance (mutual aid) may be provided among the parties during those times of both (i) emergency and (ii) routine law enforcement work of a non-emergency nature to fulfill a mutual aid request. Example of the latter situation would be pre-arranged training exercises and programs as well as temporary assignment of law enforcement officers and/or equipment to another law enforcement agency for training or patrol purposes where the officers and/or equipment may be involved in police intervention situations.
3. Power and Authorization.
 - a. Although the City is located within the County for purposes of this Agreement, the City shall not be considered to be within the territorial limits of the County. Operation by the Sheriff's Office within the City shall be considered operations outside the territory of the Sheriff's Office.
 - b. Each party agrees that its law enforcement agency will supply personnel equipment, and other available resources to the other party as part of the

SRT. The number of personnel and the amount or type of equipment to be supplied shall be determined by each party's chief law enforcement officer, or his or her designee.

- c. The obligation to render mutual aid is strictly voluntary in nature. When the SRT is activated, each party may hold back any personnel and equipment as deemed appropriate in the sole discretion of its chief law enforcement officer or his or her designee. Each party has the right to recall loaned personnel and equipment at any time. Neither party shall incur any liability or responsibility for the failure to respond to or recall any personnel provided in response to any request for assistance made pursuant to this Agreement.
- d. Each party authorizes its chief law enforcement officer, or his or her designee, to pre-arrange training exercises and programs as well as temporary assignment of officers and/or equipment to the other party for training purposes. Joint training for all personnel participating in SRT operations will be conducted on topics and at times and places mutually agreed upon between the parties. IPD will maintain all SRT related training records.

4. Command Structure.

- a. During incidents occurring within the city, the Incident Commander will be a member of IPD, and during incidents occurring within the County but outside the city, the Incident Commander will be a member of the Sheriff's Office. The Incident Commander shall be in command of the operation(s) under which the SRT is activated and the SRT Commander shall report to the Incident Commander. SRT members will report to the SRT Commander during incidents and training events.
- b. The parties' chief law enforcement officers, or their designees, shall select a SRT Commander by mutual agreement, and after consulting with the SRT Commander, other team leaders and operators as needed.

5. Compensation, Expenses, and Liability.

- a. Except as otherwise provided in this Section 5, each party expressly waives all claims of whatever type or nature against the other and its personnel that may arise out of the performance of this Agreement.
- b. The party receiving aid pursuant to this Agreement shall defend, indemnify, and hold the assisting party harmless from any and all claims, costs, losses, damages, and judgments (including but not limited to reasonable attorney's fees) against the assisting party arising from the

negligence or wrongful acts of the party receiving aid, its officers, and its personnel. Each party shall notify the other of any claims or lawsuit received arising out of SRT operations.

- c. The parties agree that GML Section 209-m(S) applies to the assistance provided pursuant to this agreement.
 - d. All individuals shall retain all of their pension, disability, contractual, and compensation rights while performing duties in accordance with this Agreement.
 - e. To the extent permitted by law, including but not limited to GML Sections 119-n, 119-o and 209-m all the powers (including the power of arrest), duties, rights, privileges and immunities from liability which apply to the activities of the parties and the members of the SRT when performing their function within their respective territorial limits shall apply to the activities of the SRT, team members, and other police officers or employees while furnishing tactical assistance outside their territorial limits under the terms of this Agreement unless otherwise provided by law or this Agreement.
6. Rules and Regulations. The parties' chief law enforcement officers shall establish uniform rules and regulations for the operation of the SRT as necessary and appropriate to implement this agreement. Vehicles, fire arms, equipment, and apparatus furnished in or for mutual aid shall be operated by personnel trained in the proper use of same.
7. Cooperation.
- a. In the event an SRT activation results in an officer-involved shooting, accidental injury, or other event or results requiring investigation or review, both parties will cooperate and consult with each other in the conduct of such investigation or review. Each local government and each law enforcement agency will make available to the other any information or resources necessary to conduct such investigation or review.
 - b. The Police Chief and the Sheriff will fully communicate, consult and cooperate with each other to ensure that a thorough, efficient and effective investigation or review is conducted and that unnecessary duplication is avoided. The results of such investigation shall be shared with each local government.
 - c. Each party shall have access to the incident reports created by the other party related to incidents responded to under this Agreement.

8. Effective Date and Termination.

- a. This Agreement shall not be effective until approved by a majority vote of the governing board of each body and shall continue through December 31, 2027.
- b. This agreement may be terminated on notice by either party at any time. Obligations previously incurred are not extinguished by the termination of the Agreement.

9. Miscellaneous.

- a. This agreement constitutes the entire agreement between the parties and cannot be modified or amended except by written agreement of the parties.
- b. Each party agrees to use best efforts to obtain and maintain certification from the SRT Team Certification Program administered by the State of New York Municipal Police Training Council.
- c. Any media release or press conference regarding an SRT activation will, if practicable, be coordinated in advance between the Police Chief and the Sheriff. The parties agree that media releases or press conferences will generally be initiated by the agency in whose jurisdiction the subject matter at hand occurred.
- d. This agreement shall not be construed or deemed to be an agreement for the benefit for any third party or parties. No third party or parties shall have any right of action under this agreement for any cause whatsoever.
- e. The laws of the State of New York shall govern this agreement. The parties agree to comply with all applicable federal, state, and local laws, rules, and regulations in connection with the performance of this agreement.
- f. This agreement may be executed in any number of counterparts, each of which shall be deemed an original.
- g. For the purposes of this agreement, when involved in routine law enforcement work of a non-emergency nature, temporary assignments and training exercises, the law enforcement agency from which the equipment is assigned, or which is providing the training, or which is sponsoring the training exercise shall be deemed the assisting local government.

I WITNESS WHEREOF; the parties hereto have placed their hands and seals.

County of Tompkins

City of Ithaca

By: _____
Lisa Holmes, Interim Administrator
County Administrator

By: _____
Dominick Recckio, Acting City
Manager

Dated: _____

Dated: _____

By: _____
Derek Osborne, Sheriff

By: _____
Thomas Kelly, Chief of Police

Dated: _____

Dated: _____

JOINT ITHACA-TOMPKINS SPECIALIZED RESPONSE TEAM MUTUAL AID ASSISTANCE AND INTERMUNICIPAL AGREEMENT

THIS AGREEMENT made this ____ day of _____, 2026, by and between the County of Tompkins ("County"), a municipal corporation with offices located at 125 E. Court Street, Ithaca, New York, and the City of Ithaca ("City"), a municipal corporation with offices located at 108 E. Green Street, Ithaca, New York (each a "local government " or collectively, "local governments.")

WHEREAS local governments are authorized to request and provide police assistance to each other pursuant to New York General Municipal Law ("GML") Section 209-m, and

WHEREAS the temporary exchange of law enforcement officer and equipment for the purpose of mutual assistance is further contemplated by Section 209-m, and

WHEREAS Article 5-G of the GML authorizes municipal corporations to enter into agreements for the performance of their respective functions, powers, and duties on a cooperative or contract basis or for the provision of a joint service, and

WHEREAS Article 5-G provides that such agreements may extend the appropriate territorial jurisdiction of the participants necessary to fulfill said service, and allow personnel assigned to a joint service to possess the same power, duties, immunities, and privileges they would ordinarily possess if they performed them in the area where they are employed, and

WHEREAS GML Section 209-m, New York Criminal Procedure Law Sections 140.10(1) & (3) 120.60 et seq., and 690.25 and other applicable authority authorize law enforcement officers to exercise certain police powers and authorities outside their geographic area of employment when a request for assistance is forthcoming from another law enforcement agency, and

WHEREAS each party has authority to operate a Specialized Response Team to respond to certain criminal acts or threats that are more effectively dealt with by a specially trained tactical team than standard police operations, and

WHEREAS the parties have determined that it is in the best interests of the respective communities and of mutual advantage to enter into this agreement for the provision of interagency law enforcement services, and

WHEREAS the New York State Law Enforcement Accreditation Program has requested that the parties enter into an agreement formalizing the operation of the joint Specialized Response Team;

NOW THEREFORE, pursuant to the above considerations and the covenants and mutual benefits contained in this Agreement, the parties agree as follows:

1. Purpose. The parties recognize that certain criminal acts or threats are more effectively dealt with by a specially trained tactical team than standard police operations, and that in such situations the use of law enforcement officers to perform law enforcement duties and the use of law enforcement equipment and supplies outside the territory of the local government where the officers are legally employed may be desirable and necessary. The objectives of this Agreement are:
 - a. the more effective and efficient use of law enforcement resources and services in responding to law enforcement intervention situations;
 - b. an enhanced degree of cooperation between the Ithaca Police Department ("IPD"), and the Tompkins County Sheriff's Office;
 - c. the maintenance of a joint Specialized Response Team ("SRT") composed of resources from and available to the Sheriff's Office, and IPD;
 - d. the development and use of training exercises or programs where skills, knowledge, procedures, and expertise are shared by the parties;
 - e. the adoption of rules and regulations providing for a single team commander and team leaders, a single set of standard operational procedures, training, records maintenance, and the fiscal responsibilities of each agency; and
 - f. The elimination of the need to follow the formal procedure set forth in GML Section 209-m as applied to requests for assistance from the other party in the form of personnel and/or equipment as part of SRT activation.
2. Authorization. Intergovernmental SRT service and assistance (mutual aid) may be provided among the parties during those times of both (i) emergency and (ii) routine law enforcement work of a non-emergency nature to fulfill a mutual aid request. Example of the latter situation would be pre-arranged training exercises and programs as well as temporary assignment of law enforcement officers and/or equipment to another law enforcement agency for training or patrol purposes where the officers and/or equipment may be involved in police intervention situations.
3. Power and Authorization.
 - a. Although the City is located within the County for purposes of this Agreement, the City shall not be considered to be within the territorial limits of the County. Operation by the Sheriff's Office within the City shall be considered operations outside the territory of the Sheriff's Office.
 - b. Each party agrees that its law enforcement agency will supply personnel equipment, and other available resources to the other party as part of the

SRT. The number of personnel and the amount or type of equipment to be supplied shall be determined by each party's chief law enforcement officer, or his or her designee.

- c. The obligation to render mutual aid is strictly voluntary in nature. When the SRT is activated, each party may hold back any personnel and equipment as deemed appropriate in the sole discretion of its chief law enforcement officer or his or her designee. Each party has the right to recall loaned personnel and equipment at any time. Neither party shall incur any liability or responsibility for the failure to respond to or recall any personnel provided in response to any request for assistance made pursuant to this Agreement.
- d. Each party authorizes its chief law enforcement officer, or his or her designee, to pre-arrange training exercises and programs as well as temporary assignment of officers and/or equipment to the other party for training purposes. Joint training for all personnel participating in SRT operations will be conducted on topics and at times and places mutually agreed upon between the parties. IPD will maintain all SRT related training records.

4. Command Structure.

- a. During incidents occurring within the city, the Incident Commander will be a member of IPD, and during incidents occurring within the County but outside the city, the Incident Commander will be a member of the Sheriff's Office. The Incident Commander shall be in command of the operation(s) under which the SRT is activated and the SRT Commander shall report to the Incident Commander. SRT members will report to the SRT Commander during incidents and training events.
- b. The parties' chief law enforcement officers, or their designees, shall select a SRT Commander by mutual agreement, and after consulting with the SRT Commander, other team leaders and operators as needed.

5. Compensation, Expenses, and Liability.

- a. Except as otherwise provided in this Section 5, each party expressly waives all claims of whatever type or nature against the other and its personnel that may arise out of the performance of this Agreement.
- b. The party receiving aid pursuant to this Agreement shall defend, indemnify, and hold the assisting party harmless from any and all claims, costs, losses, damages, and judgments (including but not limited to reasonable attorney's fees) against the assisting party arising from the

negligence or wrongful acts of the party receiving aid, its officers, and its personnel. Each party shall notify the other of any claims or lawsuit received arising out of SRT operations.

- c. The parties agree that GML Section 209-m(S) applies to the assistance provided pursuant to this agreement.
 - d. All individuals shall retain all of their pension, disability, contractual, and compensation rights while performing duties in accordance with this Agreement.
 - e. To the extent permitted by law, including but not limited to GML Sections 119-n, 119-o and 209-m all the powers (including the power of arrest), duties, rights, privileges and immunities from liability which apply to the activities of the parties and the members of the SRT when performing their function within their respective territorial limits shall apply to the activities of the SRT, team members, and other police officers or employees while furnishing tactical assistance outside their territorial limits under the terms of this Agreement unless otherwise provided by law or this Agreement.
6. Rules and Regulations. The parties' chief law enforcement officers shall establish uniform rules and regulations for the operation of the SRT as necessary and appropriate to implement this agreement. Vehicles, fire arms, equipment, and apparatus furnished in or for mutual aid shall be operated by personnel trained in the proper use of same.
7. Cooperation.
- a. In the event an SRT activation results in an officer-involved shooting, accidental injury, or other event or results requiring investigation or review, both parties will cooperate and consult with each other in the conduct of such investigation or review. Each local government and each law enforcement agency will make available to the other any information or resources necessary to conduct such investigation or review.
 - b. The Police Chief and the Sheriff will fully communicate, consult and cooperate with each other to ensure that a thorough, efficient and effective investigation or review is conducted and that unnecessary duplication is avoided. The results of such investigation shall be shared with each local government.
 - c. Each party shall have access to the incident reports created by the other party related to incidents responded to under this Agreement.

8. Effective Date and Termination.

- a. This Agreement shall not be effective until approved by a majority vote of the governing board of each body and shall continue through December 31, 2027.
- b. This agreement may be terminated on notice by either party at any time. Obligations previously incurred are not extinguished by the termination of the Agreement.

9. Miscellaneous.

- a. This agreement constitutes the entire agreement between the parties and cannot be modified or amended except by written agreement of the parties.
- b. Each party agrees to use best efforts to obtain and maintain certification from the SRT Team Certification Program administered by the State of New York Municipal Police Training Council.
- c. Any media release or press conference regarding an SRT activation will, if practicable, be coordinated in advance between the Police Chief and the Sheriff. The parties agree that media releases or press conferences will generally be initiated by the agency in whose jurisdiction the subject matter at hand occurred.
- d. This agreement shall not be construed or deemed to be an agreement for the benefit for any third party or parties. No third party or parties shall have any right of action under this agreement for any cause whatsoever.
- e. The laws of the State of New York shall govern this agreement. The parties agree to comply with all applicable federal, state, and local laws, rules, and regulations in connection with the performance of this agreement.
- f. This agreement may be executed in any number of counterparts, each of which shall be deemed an original.
- g. For the purposes of this agreement, when involved in routine law enforcement work of a non-emergency nature, temporary assignments and training exercises, the law enforcement agency from which the equipment is assigned, or which is providing the training, or which is sponsoring the training exercise shall be deemed the assisting local government.

I WITNESS WHEREOF; the parties hereto have placed their hands and seals.

County of Tompkins

City of Ithaca

By: _____
Lisa Holmes, Interim Administrator
County Administrator

By: _____
Dominick Recckio, Acting City
Manager

Dated: _____

Dated: _____

By: _____
Derek Osborne, Sheriff

By: _____
Thomas Kelly, Chief of Police

Dated: _____

Dated: _____



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Police Department
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: COMMITTEE OF THE WHOLE MEETING B

FROM: Police Chief Thomas Kelly

DATE: April 22, 2026

RE: Drug Task Force Mutual Aid and Intermunicipal Cooperation Agreement

ITEM #: 5.2

The Ithaca Police Department's Special Investigations Unit works with partner agencies to reduce large quantities of Opioids, Fentanyl and Methamphetamines from entering our community as well as other illicit substances. We give attention to these issues because of the extensive harm caused to our vulnerable population and the association with violent crime. The participating agencies of this formal agreement are partnering to coordinate a more effective and efficient law enforcement response to illegal drug activity through the Tompkins County Drug Task Force.

ATTACHMENTS:

[Work Session Memo to Council - MOU Drug County Task Force\(041626\).pdf](#)
[Resolution - Intermunicipal Agreement \(DTFMA\).pdf](#)
[ADDENDUM to DTFMA \(041626\).pdf](#)
[County Drug Task Force Mutual Aide.pdf](#)



MEMORANDUM

Date: April 16, 2026

To: Common Council

From: Catherine Muskin, Acting City Attorney; Police Chief Thomas Kelly

RE: Approval of Intermunicipal Agreement, Tompkins County Drug Task Force

EXECUTIVE SUMMARY

New York State General Municipal Law (“GML”) § 119-o permits municipal corporations such as the City of Ithaca (the “City”) to enter into agreements—called intermunicipal agreements for short—for the performance amongst themselves or for the other of their respective functions, powers, and duties on a cooperative or contract basis or for the provision of a joint service. Simultaneously, under GML § 209-m, a municipality may request assistance from a nearby law enforcement agency. The proposed intermunicipal agreement governs the relationship between numerous Tompkins County entities for responses to narcotics operations, as set forth under GML § 209-m.

GML § 119-o requires the approval of any intermunicipal agreement by each municipality’s legislative body.

PROJECT HISTORY, BACKGROUND, & ANALYSIS

The proposed intermunicipal agreement between IPD and varying municipalities—including County entities—the “Agreement”) sets forth a drug task force through which these parties assist one another with narcotics operations. Requests for specialized services may be requested by any one agency from any other agency “when resources are available, and as they relate to drug task force activities, at the sole discretion of the chief law enforcement head of the controlling agency,” granting significant discretion to the IPD in terms of ability to offer resources to participating agencies. Other pertinent terms include the following:

- **Structure:** Officers on the task force remain under the administrative supervision of their home agency. For purposes of the task force, various County Sheriff staff oversee varying areas; most pertinent to IPD is the investigative team. The investigative team conducts investigations, surveillance, controlled purchases and informant management, prepares and executes warrants, does recordkeeping, trains, collects and documents evidence, and performs arrests and follow-up case work.
- **Media Statements:** No singular agency may give media statements related to narcotics operations without prior written approval of all participating agencies.



CITY OF ITHACA | WORK SESSION MEMO

- **Liability:** There is a mutual release of liability for all participating parties: per section 5, each “remains responsible for the acts and omissions of its own officers and employees, pursuant to applicable law. . . .” Workers’ compensation flows from IPD for IPD officers.
- **Cost:** Each participating agency bears its own costs for salary, overtime, and benefits of personnel, and for equipment and facilities.
- **Records sharing:** Participating agencies must share “case-relevant information consistent with the law, including Criminal Procedure Law, privacy statutes, and agency policies.”
- **Termination:** There are broad termination rights for any participating agency, through which IPD could withdraw with 30 days’ written notice to all other agencies.
- **Term:** Upon Council approval, the City will propose back to the force a five (5)-year term, which is the maximum term for an intermunicipal agreement under GML §119-n(2)(j). The City will not execute this MOU without this term.

POLICY ALIGNMENT STATEMENT

This Agreement aligns with the Council’s legislative priority of “Public Works and Infrastructure” by making a no-cost investment in partnering with area law enforcement partners to better address narcotics operations. It squarely fits within the following previously identified priority: “Improve operational efficiency through targeted investments in personnel, training, fleet modernization, technology upgrades, and integrated data systems.”

In addition, it aligns with the Council’s legislative priority of “Public Safety” by expanding the potential personnel and equipment available for these operations, “strengthen[ing] coordination and communication . . . to ensure effective, equitable, and timely emergency responses.”

QUESTIONS FOR COUNCIL

BUDGET IMPLICATIONS & FUNDING

There is no cost to this Agreement, as outlined above.

PUBLIC FEEDBACK

NEXT STEPS

Once this Agreement is ratified by the Council, Chief Kelly may propose the 5 year term to the participating agencies. Upon their approval, it can be executed by Chief Kelly upon designation by the City Manager, for implementation.

**RESOLUTION TO APPROVE INTERMUNICIPAL AGREEMENT
FOR DRUG TASK FORCE MUTUAL AID**

WHEREAS, local governments are authorized to request and provide police assistance to each other pursuant to New York General Municipal Law (“GML”) § 209-m; and

WHEREAS, the temporary exchange of law enforcement officer and equipment for the purpose of mutual assistance is further contemplated by GML § 209-m; and

WHEREAS, Article 5-G of the GML authorizes municipal corporations to enter into agreements for the performance of their respective functions, powers, and duties on a cooperative or contract basis or for the provision of a joint service; and

WHEREAS, Tompkins County and several municipalities within the County have come to terms on an agreement related to the establishment of a drug task force to investigate and respond to narcotics matters in the County; and

WHEREAS, GML § 119-o requires approval of any intermunicipal agreement by a legislative body;

NOW, THEREFORE, the Common Council hereby resolves as follows:

1. The proposed agreement between Tompkins County and other municipal partners, “Tompkins County Sheriff’s Office, Drug Task Force Mutual Aid and Intermunicipal Cooperation Agreement,” is approved, pending the execution of the amendment drafted by the City Attorney.
2. The City Attorney is authorized to take all necessary steps to finalize and execute the proposed agreement, and to have the City Manager and Police Chief sign on behalf of the City.

**AMENDMENT TO DRUG TASK FORCE MUTUAL AID AND
INTERMUNICIPAL COOPERATION AGREEMENT**

This is an amendment (the “Amendment”) to the aforementioned intermunicipal agreement under General Municipal Law §§ 119-o and 209-m, which has been signed by various participating agencies at the time of this Amendment, namely:

The Tompkins County Sheriff’s office
New York State Police
Tompkins County District Attorney’s Office
Tompkins County Department of Probation and Community Justice
Village of Groton Police Department
Village of Cayuga Heights Police Department
Village of Dryden Police Department
Trumansburg Village Police Department

last dated February 19, 2026 (the “Original Contract”).

WHEREAS, THE CITY OF ITHACA, a municipal corporation with offices at 108 East Green Street, Ithaca, New York 14850 (“the City”), seeks to join the Original Contract with an additional contract term, namely, a term of service;

NOW, THEREFORE, the parties agree as follows:

1. **Term.** The Original Contract is dated for a term of five (5) years, ending April 23, 2031. This represents the maximum number of years permissible under State General Municipal Law.
2. **Participating Agencies.** Any further participating agencies shall be subject to the Original Contract and this Amendment, and shall sign on this Amendment to represent the same.

All other provisions of the Original Contract shall remain in full force and effect.

IN WITNESS WHEREOF, the parties hereto have executed or approved this Amendment on the dates appearing under their signatures.

Tompkins County Sheriff’s Office

Title:	Printed Name:
Agency:	
Signature:	Date:

New York State Police

Title:	Printed Name:
Agency:	
Signature:	Date:

Tompkins County District Attorney's Office

Title:	Printed Name:
Agency:	
Signature:	Date:

Village of Groton

Title:	Printed Name:
Agency:	
Signature:	Date:

Village of Cayuga Heights

Title:	Printed Name:
Agency:	
Signature:	Date:

Village of Dryden

Title:	Printed Name:
Agency:	
Signature:	Date:

Village of Trumansburg

Title:	Printed Name:
Agency:	
Signature:	Date:

City of Ithaca

Title:	Printed Name:
Agency:	
Signature:	Date:

TOMPKINS COUNTY SHERIFF'S OFFICE

DRUG TASK FORCE MUTUAL AID AND INTERMUNICIPAL COOPERATION AGREEMENT

This Agreement is entered into among those law enforcement agencies (hereinafter "Participating Agencies") within Tompkins County who, by affixing their signature, agree to participate in the Tompkins County Drug Task Force managed by the Tompkins County Sheriff's Office.

1. PURPOSE

The Participating Agencies enter this Agreement to coordinate and strengthen law enforcement responses to illegal drug activity through the Tompkins County Drug Task Force ("TC-DTF"). This Agreement promotes efficiency, consistency, officer safety, and effective resource sharing.

2. AUTHORITY

This Agreement is executed under the following laws:

- a. Local governments are authorized to request and provide police assistance to each other pursuant to New York General Municipal Law (GML) Section 209-m.
- b. The temporary exchange of law enforcement officers and equipment for mutual assistance is further contemplated by Section 209-m.
- c. Article 5-G of the GML authorizes municipal corporations to enter into agreements for the performance of their respective functions, powers, and duties on a cooperative or contract basis for the provision of a joint service.
- d. Article 5-G of the GML provides that such agreements may extend the appropriate territorial jurisdiction of the Participating Agencies necessary to fulfill said service, and allow personnel assigned to a joint service to possess the same powers, duties, immunities, and privileges they would ordinarily possess if they performed them in the area where they are employed.
- e. GML Section 209-m, New York State Criminal Procedure Law Sections 140.10(1-3), 120.60, 690.25, and other applicable laws authorize law

enforcement officers to exercise certain police powers and authorities outside their geographic area of employment.

- f. New York State Executive Law Section 223 authorizes the Superintendent of the State Police to cooperate with other State departments or local authorities to prevent and detect crime and apprehend criminals.

3. ESTABLISHMENT AND SCOPE OF THE TC-DTF

Each Participating Agency authorizes its law enforcement personnel to participate in the TC-DTF when requested and deemed necessary by the Participating Agencies. Participation may include investigations, operations, surveillance, intelligence-sharing, technology access, and support services.

4. MUTUAL AID AND COOPERATION

a. General Provision

Each Participating Agency agrees to provide reasonable assistance to the others upon request when resources are available, and deployment will not compromise the obligations or operations of each Participating Agency.

b. Specially Trained Units

Requests for specialized services (e.g., K-9, aviation, crisis negotiation, tactical response, or other specialized operational support) may be requested by any Participating Agency when resources are available, and as they relate to drug task force activities, at the sole discretion of the chief law enforcement head of the controlling agency.

c. Aid Provided by Agencies

Any assisting local government, police department, or agency conducting operations related to TC-DTF activity outside of its designated jurisdiction shall assume any loss, damage, expenses, or costs for personnel, equipment, and supplies, and shall not seek compensation from any other Participating Agency for same. No Participating Agency shall be deemed an agent or employee of any other Participating Agency.

5. ORGANIZATIONAL

a. Governance & Oversight

- i. Executive Board: The Executive Board includes one (1) representative from the following Participating Agencies. The board will provide strategic direction, budget oversight, major policy decisions, interagency coordination, and conflict resolution.
 - Tompkins County Sheriff (or designee)
 - Chiefs of participating local police agencies (or designees)
 - Tompkins County District Attorney (or designee)
 - NYS Police representative
 - Federal partner representative (DEA, FBI)
 - Tompkins County Probation Director (or designee)
- ii. Key Responsibilities of the Executive Board:
 - Approve the TC- DTF mission, priorities, and annual goals
 - Approve staffing levels by agency
 - Approve any budgets, grant applications, and asset-forfeiture disbursements
 - Establish and review performance metrics
 - Ensure legal/ethical compliance
 - Approve subsequent media release drafts
 - Meet quarterly, at a minimum, or when requested by an Executive Board Member.
- iii. All Participating Agencies to this agreement hereby agree that any and all media relations and/or appearances with regard to investigations performed pursuant to this agreement shall be coordinated and agreed upon by all Participating Agencies hereto. No Participating Agency shall unilaterally give statements to the media regarding any investigation, prosecution, or other law enforcement operation conducted in accordance with the terms of this agreement without prior written approval of all participating parties and agencies. No brochure, news, media or press release, public announcement, memorandum or other information of any kind shall be disseminated in any way to the public, nor shall any presentation be given regarding any activities pursuant to this agreement, without prior written consent of all Participating Agencies hereto.

b. Task Force Commander

- i. The Task Force Commander is the Criminal Investigations Lieutenant from the Tompkins County Sheriff's Office.
- ii. The Task Force Commander reports to the Executive Board.

iii. Responsibilities:

- Daily operational oversight
- Organize routine investigative meetings
- Approve case direction, resource deployment, and operational plans
- Ensure interagency communication
- Manage personnel assignments and evaluations
- Liaison to DA's Office and federal partners
- Ensure compliance with policy, training, and reporting requirements
- Review use-of-force and high-risk operations
- Asset-forfeiture applications & tracking (state & federal)

c. Assistant Commander / TC-DTF Supervisor

- i. The Assistant Commander / TC-DTF Supervisor will be a Criminal Investigator from the Sheriff's Office.
- ii. Responsibilities:
 - Schedule & Direct investigative work
 - Develop task force member meeting schedule & frequency.
 - Tracking Tips
 - Initiate operational plans below the threshold risk in consultation with investigative team members from Participating Agencies and provide copies to Executive Board members of agencies involved in the operation for review.
 - Coordinate surveillance, controlled buys, and search warrants
 - Assignment of personnel to cases
 - Quality-control for reports and case files
 - Share information, coordinate, and work to prevent investigative conflicts with GIVE (Gun Involved Violence Elimination) or other task force activities.

d. Investigative Team Members

- i. Investigators / Detectives / Selected Deputies & Officers
- ii. Assigned from the Sheriff's Office, municipal PDs, State Police, NYS Parole, Tompkins County Probation, and federal task force officers, if applicable.
- iii. Responsibilities:
 - Conduct narcotics investigations
 - Surveillance, controlled purchases, informant management
 - Search warrant preparation and execution
 - Arrests and follow-up case work

- Complete reports, collect and document evidence
- Attend required training(s) (undercover operations, surveillance, etc.) as recommended by the Executive Board, but at the discretion of each agency, and at their expense, for their respective TC-DTF investigative team.

e. Support & Logistics

- i. Executive Assistant to the Sheriff
- ii. Handles:
 - Budget tracking, grant application(s) & reporting
 - Overtime documentation when needed
 - Purchasing
 - Training records

f. Prosecutorial Integration

- i. Assigned Prosecutor / Liaison ADA
- ii. Purpose: Coordination between investigators and prosecutors.
- iii. Responsibilities:
 - Provide advice on investigative legality (CI mgt., UC ops, warrants)
 - Participate in case strategy development
 - Handle all narcotic prosecutions
 - Maintain communication between TC- DTF and the DA's Office

g. Specialized Response & Tactics (SRT) Coordination

- i. Provides tactical support for high-risk entries/warrant service
- ii. Ensures adherence to risk-assessment/matrix
- iii. Implementation based on SRT MOU.

6. OPERATIONAL CONTROL

- i. Officers assigned to the TC-DTF shall remain under the administrative supervision of their home agency. For purposes of specific operations, investigative team members shall follow the operational direction of the designated TC-DTF commanding officer or supervisor.
- ii. TC-DTF operations falling within the jurisdictional control of a Participating Agency shall fall under the control of that jurisdiction's chief law enforcement officer or designee, of the respective agency in coordination with the Task Force Commander or Assistant Commander/TC-DTF Supervisor, unless otherwise delegated to the Tomkins County Sheriff's Office.

- iii. Daily updates and reports to chief law enforcement officers involving TC-DTF activities within each jurisdiction shall be the responsibility of that jurisdiction's assigned TC-DTF member(s) and their respective agency's internal policy and chain-of-command expectations.

7. TC-DTF MEMBERSHIP STATUS

- i. The Executive Board may accept investigative team members, by majority vote, who are qualified law enforcement officers from Participating Agencies to work with the TC-DTF. The Executive Board retains sole discretion to determine:
 - which individuals are approved as TC-DTF investigative team members and,
 - the number of personnel from each agency who may receive such status.
- iv. TC-DTF participation is a privilege, not a right, and may be suspended or revoked by a majority vote of the Executive Board at any time, with or without cause.
- v. The Sheriff's Office shall issue appropriate identification credentials to TC-DTF investigative members, which must be surrendered immediately upon revocation, reassignment, or termination of the individual's participation in the TC-DTF.

8. COMPLIANCE WITH POLICY

- i. Members shall comply with their own agency's policies and all governing laws while operating within their respective jurisdictions.
- ii. If an operation occurs outside of the jurisdiction of a Participating Agency and within the jurisdiction of the Tompkins County Sheriff's Office, investigative team members of the TC-DTF shall follow the policies and procedures of the Tompkins County Sheriff's Office, to the extent that they may differ or be absent from a member's home agency. This shall include, but not be limited to, those related to Equitable Policing, use of On-Body Recording Devices, Emergency Response/Pursuit Driving, and Duty to Intervene. Copies shall be provided by the Tompkins County Sheriff's Office, with each investigative team member signing a receipt acknowledging that they have read and understand the policies and agree to follow them as applicable. This provision does not apply to the State Police.

- iii. In the event an operation being carried out by the TC-DTF results in an officer-involved shooting, use of force, accidental injury, or other event requiring investigation or review, all parties will cooperate and consult with each other regarding such investigation or review. Each party will make available to the other any information, reports, footage, recordings, or resources necessary to conduct such investigation or review. The results of any such review or investigation will be shared with the chief law enforcement officer of each partnering agency upon request.

5. LIABILITY AND WORKERS' COMPENSATION

a. Liability

Each Participating Agency remains responsible for the acts and omissions of its own officers and employees, pursuant to applicable law, even when special deputy status is provided.

b. Workers' Compensation

Each Participating Agency shall provide workers' compensation coverage for its own personnel engaged in TC-DTF activities.

6. COSTS, EQUIPMENT, AND RESOURCES

a. Personnel Costs

Each Participating Agency is responsible for the salary, overtime, and benefits of its own personnel unless a separate reimbursement or grant agreement applies.

b. Equipment

Equipment provided for TC-DTF operations remains the property of the agency that supplied it, unless transferred by written agreement. Repair or replacement of damage incurred to equipment during an operation will be the responsibility of the Participating Agency providing said equipment.

c. Facilities

TC-DTF activities may be conducted in spaces designated by the County or other agencies. Maintenance and operating costs will be paid by the agency responsible for the facility unless otherwise agreed.

7. INFORMATION-SHARING AND CONFIDENTIALITY

a. Investigative Information

Participating Agencies shall share case-relevant information consistent with the law, including Criminal Procedure Law, privacy statutes, and agency policies.

b. Records and FOIL

Records created by an agency remain that agency's records. Nothing in this Agreement requires any agency to generate a record, conduct proactive database searches, or disclose information exempt under FOIL or other law.

9. DISPUTE RESOLUTION

Operational disputes amongst investigative team members will first be addressed by the TC-DTF Commander whenever practical. If unresolved, disputes will be elevated to the Executive Board for final determination.

10. TERM, TERMINATION, AND WITHDRAWAL

a. Term

This Agreement takes effect upon execution by all Participating Agencies and shall continue until terminated.

b. Termination

The Agreement may be terminated at any time by mutual written consent of all Participating Agencies.

c. Withdrawal

Any Agency may withdraw with 30 days' written notice to all other Participating Agencies. Withdrawal does not affect obligations incurred before the effective date of withdrawal. The withdrawal of one party shall not invalidate this Agreement with respect to the remaining Participating Agencies.

11. AMENDMENTS

Amendments must be in writing and signed by all Participating Agencies.

12. NON-WAIVER

Failure of any party to insist on strict performance of any provision shall not constitute a waiver of that provision or any other.

13. SEVERABILITY

If any provision of this Agreement is found invalid, the remaining provisions shall continue in full force.

14. EFFECTIVE DATE

This Agreement becomes effective upon signature by the governing bodies of all Participating Agencies and the Tompkins County Sheriff.

IN WITNESS WHEREOF, the Participating Agencies have executed this Agreement as of the dates indicated below.

TITLE <i>SHERIFF</i>	PRINTED NAME <i>DAREN R. OSBORNE</i>
AGENCY: <i>TomPkins Co. SHERIFF'S OFFICE</i>	
SIGNATURE <i>[Signature]</i>	DATE <i>2/10/2026</i>

TITLE <i>CAPTAIN</i>	PRINTED NAME <i>MIKHAIL Y. WOLCHETSKY</i>
AGENCY: <i>NEW YORK STATE POLICE</i>	
SIGNATURE <i>[Signature]</i>	DATE <i>2-19-2026</i>

TITLE <i>District Attorney</i>	PRINTED NAME <i>Matt Van Houten</i>
AGENCY: <i>District Attorney's office</i>	
SIGNATURE <i>[Signature]</i>	DATE <i>2/19/26</i>

TITLE <i>Probation Director</i>	PRINTED NAME <i>Daniel J. Cornell</i>
AGENCY: <i>Tompkins County Department of Probation & Community Justice</i>	
SIGNATURE <i>Daniel J. Cornell</i>	DATE <i>02/10/2026</i>

TITLE CHIEF	PRINTED NAME Troy A. Boice	
AGENCY: Vt Groton Police Dept.		
SIGNATURE CHIEF Troy A. Boice	DATE 2/16/26	

TITLE Chief of Police	PRINTED NAME Jerry L. Wright	
AGENCY: Village of Cayuga Heights		
SIGNATURE JL Wright	DATE 02/17/2026	

TITLE OIC Sergeant	PRINTED NAME Tyler DeCoursey	
AGENCY: Village of Dryden Police Department		
SIGNATURE Tyler #120	DATE 2/19/26	

TITLE CHIEF OF POLICE	PRINTED NAME BRUCE (JOE) NELSON	
AGENCY: TOWN OF BURLINGTON VILLAGE POLICE DEPT		
SIGNATURE Bruce Nelson	DATE 2/19/26	

TITLE	PRINTED NAME	
AGENCY:		
SIGNATURE	DATE	

TITLE	PRINTED NAME	
AGENCY:		
SIGNATURE	DATE	

TITLE	PRINTED NAME	
AGENCY:		
SIGNATURE	DATE	



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

City Manager's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: COMMITTEE OF THE WHOLE MEETING B
FROM: City Manager's Office
DATE: April 22, 2026
RE: City Manager's Monthly Report- April 2026
ITEM #: 6.1

- Vacancy Report
- Financial Report
- Executive Summary- Parking Fees

ATTACHMENTS:

[CM_Report_for_0422_Agenda.pdf](#)
[0403_Vacancy_Report.pdf](#)
[0403_Finance_Report.pdf](#)
[0403_Exec_Summary_Parking_Fee_Increase_Q1.pdf](#)
[0403-CM_Report_ithaca-city-2025-114 \(2\).pdf](#)

MEMORANDUM

Date: April 3, 2026
To: Common Council
CC: Department Heads
From: Dominick Recckio, Acting City Manager
RE: City Manager's Report to Council

Common Council,

I am pleased to provide this monthly report and look forward to answering any questions you may have.

An ongoing thanks to the many colleagues at the City who make these outcomes possible.

I. Vacancy Report

- a. Please find an addendum to this report listing the current City staff vacancies.
- b. As of March 30, the vacancy rate stands at 7.48% (-.35% from January 28). The budgeted annual rate is 5.5%.
- c. Staff continue to monitor anticipated vacancies. Several retirements or resignations are expected (three within the next 90 days) before the midpoint of this year. HR continues to work with employees who express their intent to retire or separate from City service.

II. Financial Report

- a. In the financial report attached to this document, please find year-to-date actuals from the last available full month (February).
- b. The request for proposals to solicit a firm to conduct the City's past-due financial audits was published on March 27. It can be found on the City website. Copies have been made available directly to competitive firms that may be interested in working with the City. Submissions are due on April 22, with an award expected on or around May 6.
- c. The Bonadio Group continues its consulting work on the city's financial systems and reporting.
- d. On March 27, the New York State Office of the State Comptroller (OSC) published their audit report for the City of Ithaca on the OSC website ([City of Ithaca - Records and Reports \(2025M-114\)](#)). This report included four findings related to accounting records, reconciliations, and financial reporting. The City prepared and submitted a written corrective action plan (CAP) that addresses the audit's findings and recommendations; it is published within the report on the OSC website. City staff have already started implementing the corrective actions identified in the CAP.

III. Department Head Searches

- a. We have concluded our search for the Controller and Human Resources Director positions. Common Council will soon receive resolutions related to the appointment of two highly qualified individuals for these positions.
- b. Staff are preparing onboarding plans for these two key leadership positions.
- c. Thank you to the Common Council members, staff, and community members who participated in the search processes.

IV. 118 East Green Street (Asteri) Order to Vacate

- a. The Order to Vacate for the residential tower at 118 E. Green Street was lifted effective 2:30 PM on March 20, 2026, following successful completion of required life-safety testing earlier in the day. Building residents moved back into the building from local hotels over the course of several days.
- b. The Vecino Group will continue making permanent repairs to the building, including full window replacements, addressing other non-life-threatening fire code violations, and additional unit-specific work. The Fire Department's Fire Prevention Bureau will conduct regular inspections until all remaining code violations are resolved, followed by periodic inspections consistent with all multi-unit residential buildings in the city.
- c. The City of Ithaca took several measures to support displaced residents, including:
 - i. Providing several dozen displaced residents with access to laundry cards so that they could do laundry at a local laundromat while staying at hotels (in partnership with IURA and OAR).
 - ii. Purchase and distribution of 270+ frozen meals to residents returning to the building, in partnership with Foodnet Meals on Wheels. Thank you to the Conference Center for lending freezer space.
- d. City staff coordinated closely with partners at New York State, Tompkins County, community service provider agencies, and the property owner. Thank you and kudos to the City staff who stepped up to coordinate and support operations during the emergency situation.
- e. I have scheduled an internal after-action dialogue with City staff to learn from the event, coordinate any next steps, and prepare for any similar future scenarios.

V. Community Responder Program (ROOTS) and Community Justice Center

- a. City staff held an internal kick-off meeting in March outlining what activities need to occur in order to stand up a community responder division. Staff are re-convening in small groups facilitated by the Community Justice Center to draft job descriptions, policies and procedures, training programming etc. before the entire group reconvenes in April to prepare for next steps. Common Council can expect staff to present program details in the coming months including job description proposals to be added to the City roster.
- b. I am working with the Downtown Ithaca Alliance to reconfigure the Downtown Community Outreach Worker program. I drafted an MOU with program details and expected outcomes so the program can begin this spring.
- c. The Community Justice Center continues to enhance Community Resource Hubs, including a new pilot program to distribute City of Ithaca trash bags to community members in need.
- d. The Community Justice Center, in partnership with the Ithaca Youth Bureau RISE program and the Ithaca Police Dept. are holding a community outreach and Career Day event aimed at connecting local youth with meaningful career pathways with our local

law enforcement. This collaboration will provide our young people with the opportunity to engage directly with our local public safety professionals and learn about career options, participate in interactive discussions and gain insight into the skills and experiences needed to pursue careers in law enforcement.

VI. Encampment Response

- a. In support of the Special Committee on Unhoused Services Planning, staff met with Alderperson Matos to discuss ongoing planning efforts that emerged from the 2025 Advisory Committee. Alderperson Matos and staff are planning Monthly meetings of the Special Committee, which will include a review of the updated policy and planning considerations. Community partner agencies are being invited to participate and provide feedback to the Special Committee. Expect an announcement with more details when the Committee's first meeting is scheduled.

VII. Parking

- a. *See attached memorandum regarding 2026 Q1 Parking Revenues.*
- b. City staff continue to implement updates to our paid parking system. Staff from Street and Facilities are installing ParkMobile signage throughout the City's paid parking areas to encourage better user experience and enhance revenue collection. This will be formally announced in the coming days/weeks.
- c. Physical pay stations are being phased out and will be removed throughout the paid parking areas in the coming months. These pay stations are at the end of their useful life and see a diminishing percentage of use for parking sessions as mobile payments increase.
 - i. Removing the physical pay stations will result in an estimated \$43,000 annual savings in the City's budget once the service agreement contract is not renewed, as well as gained efficiencies for staff time as maintenance and collection times on the pay stations decrease. We are hoping to achieve as many savings as possible in 2026, while anticipating realizing full savings in 2027.
- d. City staff have identified ~10 downtown parking space changes to be considered. This includes additional accessible spaces, reduction of underutilized loading zones, and other more modern uses of different spaces around the Commons based on use and demand. This will increase the on-street parking supply downtown. This effort has been supported by the Downtown Ithaca Alliance, including a recent walking tour of spaces and shared brainstorming of possible options with City staff.

VIII. City Communications and Public Information

- a. During the first quarter of 2026, the Department of Information and Community Engagement continued to significantly expand the scope and frequency of communications from the City of Ithaca to the public. This reflects a deliberate shift toward a more proactive communication plan that highlights City achievements, initiatives, and services rather than relying primarily on reactive or compliance-driven messaging.
 - i. From January through March 2026, DICE issued 34 press releases and 29 NewsFlash updates. During the same period in 2025, the City issued 10 press releases and 26 NewsFlash updates. This increase demonstrates a sustained commitment to providing clearer, timelier, and more comprehensive information to residents, partners, and stakeholders.

- ii. A revamped City website is slated to launch on April 8. This includes a redesign focused on navigation and usability, enhanced branding, and content enhancements across all departments.
- iii. CivicSend, an email newsletter tool, is being launched in early April. Common Council will receive a brief presentation on CivicSend this spring. This tool will allow members of the public to directly subscribe to curated updates on key topics, which include:
 - 1. Roads, Sidewalks, & Infrastructure
 - 2. Parks & Recreation
 - 3. Youth Programming
 - 4. Job Openings
 - 5. Planning, Zoning, & Development
 - 6. Sustainability
 - 7. Public Safety
 - 8. City Manager Updates
- iv. Public Information staff have begun preparing and disseminating press releases on monthly legislative actions to local media and key stakeholders. This began in March.
- v. Quarterly communications plans and annual calendars of key communications topics are being developed to enhance public information efforts.

IX. FEMA Letter of Map Revision (LoMR) process to address flood risk and Flood Insurance Rate Maps (FIRMs)

- a. The Superintendent of Public Works and our Consultant, Barton and Loguidice will attend an upcoming Council meeting to discuss this item and provide additional details.
- b. The City's LOMR request was submitted on December 16, 2025. While normally LOMR responses are expected within 90 days of submittal, there has still not been a response to the City from FEMA – this is likely due to government shutdowns, changes in DHS leadership, etc.
- c. The City of Ithaca received a No Cost Period of Performance (POP) Time Extension to 02/01/2027 for the Hazard Mitigation Grant Program. This is just a partial approval. The remainder of our ask/time extension (to 12/01/2027) is in the hands of FEMA Headquarters. With the government shutdown and change in Homeland Security leadership, there has been a slowdown at FEMA. There is no timeline for decisions from FEMA headquarters.
 - i. There is currently a broader-scale 42-month period of performance request to extend the Hazard Mitigation Grant Program (HMGP) across the U.S. out to 07/01/2029. If such an extension is granted, this will bolster the City of Ithaca's current/future requests for time.

Emerging issues and ongoing priorities:

- Following the adoption of the *Resolution Establishing City Policy Priorities for Executive Administration 2026*, the City Manager's office will lead the development of an executive work plan. This document will outline the operational activities, needs, and strategies to make progress on Council's adopted legislative priorities, along with timelines for anticipated completion.

- Staff requested an update from the NYS Department of Environmental Conservation re: the Cayuga Inlet Dredging Project. The project is in its final check phase, with dredging being planned for 2027.
- Preparations are underway for the annual Budget Kickoff presentation in mid-May.
- Administrative Policy Manual updates continue in coordination with HR and the Attorney's office.
- City administration has begun labor contract negotiations with IPFFA.
- City staff are focusing on procurement and maintenance as part of vehicle fleet management.
- Capital Projects planning continues, including clean-up of past data sets and preparing a five-year capital plan for the 2027 budget (see notes in Financial Report).
- Staff are working on City facilities planning, including plans to address deferred maintenance, and critical facility improvements and repair needs.

3/30/2026 Vacancy Report

Department	Wages	Fringe	Compensation	Position Name	FTE	Separation Date:	NOTES:
CITY MANAGER	\$175,100	\$44,803	\$219,903	CITY MANAGER	1	12/31/2025	
DPW	\$80,417	\$36,860	\$117,277	BUILDING MAINTENANCE AND SOLID WASTE SUPERVISOR	1	6/7/2024	
DPW	\$80,417	\$36,860	\$117,277	CIVIL ENGINEER	1	6/15/2025	
DPW	\$54,288	\$33,349	\$87,637	HEAVY EQUIPMENT OPERATOR	1	1/23/2026	
DPW	\$54,288	\$33,349	\$87,637	HEAVY EQUIPMENT OPERATOR	1	6/30/2024	
DPW	\$51,824	\$53,958	\$105,782	LIGHT EQUIPMENT OPERATOR	0.65	4/27/2025	
DPW	\$51,824	\$53,958	\$105,782	LIGHT EQUIPMENT OPERATOR	1	10/26/2025	
DPW	\$51,824	\$53,958	\$105,782	MAINTAINER	1	9/6/2025	
DPW	\$51,824	\$53,958	\$105,782	MAINTAINER	1	12/20/2025	
DPW	\$54,288	\$33,349	\$87,637	MOTOR EQUIPMENT MECHANIC	1	1/20/2025	Accepting applications
DPW	\$54,288	\$33,349	\$87,637	MOTOR EQUIPMENT MECHANIC	1	10/21/2024	Accepting applications
DPW	\$56,940	\$32,252	\$89,192	MOTOR EQUIPMENT MECHANIC SUPR	1	10/23/2024	Accepting applications
FINANCE DEPARTMENT	\$151,500	\$58,085	\$209,585	CITY CONTROLER	1	12/31/2023	OFFER ACCEPTED - COMMON COUNCIL APPROVAL PENDING
FINANCE DEPARTMENT	\$49,825	\$44,725	\$94,550	ACCOUNTS RECEIVABLE SPECIALIST	1	12/4/2025	search in progress
FINANCE DEPARTMENT	\$25,812	\$44,725	\$25,812	ACCOUNTS RECEIVABLE SPECIALIST	0.5	2/9/2026	
FIRE	\$132,989	\$104,830	\$237,819	ASSISTANT FIRE CHIEF	1	3/1/2026	Interviews scheduled 4/8/2026 Promoting from within dept.
GIAC PROGRAM	\$27,170	\$40,938	\$68,108	CUSTODIAL WORKER	0.5	1/10/2026	search in progress
GIAC PROGRAM	\$51,824	\$16,304	\$68,128	CUSTODIAN	1	10/14/2025	search in progress
GIAC PROGRAM	\$31,320	\$24,267	\$55,587	YOUTH MEDICAL CARE PROVIDER	0.5	CC 10/08/2025	20hr
GIAC PROGRAM	\$31,320	\$24,267	\$55,587	YOUTH MEDICAL CARE PROVIDER	0.5	CC 10/08/2025	20hr
GIAC PROGRAM	\$23,461	\$21,055	\$44,516	GIAC PROGRAM ASSISTANT	0.5	3/5/2025	
HUMAN RESOURCES	\$127,407	\$59,934	\$187,341	DIRECTOR HR	1	5/30/2025	OFFER ACCEPTED - COMMON COUNCIL APPROVAL PENDING
HUMAN RESOURCES	\$89,365	\$38,110	\$127,475	EQUITY TALENT ACQUISITION SPECIALIST	1	9/14/2025	Waiting for HR Director to make decisions on hiring/or not
HUMAN RESOURCES	\$89,365	\$38,110	\$127,475	HUMAN RESOURCES SPECIALIST	1	10/20/2025	Waiting for HR Director to make decisions on hiring/or not
PLANNING DEPARTMENT	\$107,328	\$66,141	\$173,469	ECONOMIC DEVELOPMENT SPECIALIST	1	9/2/2025	Search in progress
PLANNING DEPARTMENT	\$64,517	\$41,968	\$106,485	PLANNER	1	10/2/2025	
PLANNING DEPARTMENT	\$71,117	\$34,556	\$105,673	SENIOR PLANNER	1	12/8/2023	
POLICE DEPARTMENT	\$75,280	\$50,619	\$125,899	POLICE OFFICER	1	Notes re: Police Officer Positions continuously recruiting Retirements/resignations hard to fill positions moved to have civil service exam twice a year	
POLICE DEPARTMENT	\$75,280	\$50,619	\$125,899	POLICE OFFICER	1		
POLICE DEPARTMENT	\$75,280	\$50,619	\$125,899	POLICE OFFICER	1		
POLICE DEPARTMENT	\$75,280	\$50,619	\$125,899	POLICE OFFICER	1		
POLICE DEPARTMENT	\$75,280	\$50,619	\$125,899	POLICE OFFICER	1		
POLICE DEPARTMENT	\$75,280	\$50,619	\$125,899	POLICE OFFICER	1		
POLICE DEPARTMENT	\$75,280	\$50,619	\$125,899	POLICE OFFICER	1		
POLICE DEPARTMENT	\$75,280	\$50,619	\$125,899	POLICE OFFICER	1		
POLICE DEPARTMENT	\$8,000	\$2,538	\$10,538	SCHOOL CROSSING GUARD- PART TIME	0.5		
POLICE DEPARTMENT	\$8,000	\$2,538	\$10,538	SCHOOL CROSSING GUARD- PART TIME	0.5		
POLICE DEPARTMENT	\$8,000	\$2,538	\$10,538	SCHOOL CROSSING GUARD- PART TIME	0.5		
POLICE DEPARTMENT	\$8,000	\$2,538	\$10,538	SCHOOL CROSSING GUARD- PART TIME	0.5		
YOUTH BUREAU	\$53,352	\$56,161	\$109,513	PARKS AND RECREATION FACILITIES MAINTAINER	1		Revisions needed for posting
YOUTH BUREAU	\$23,460	\$33,170	\$56,630	FINANCIAL MANAGEMENT ASSISTANT	0.5		
	\$2,527,414	\$1,611,834	\$4,094,523		34.65		

estimated unspent funds for 3/1-3/30			
3/1/2026-03/31/2026=176 HOURS	\$213,038.73	\$134,319.50	\$347,358.23

Department	# of Approved Staff	# of Vacancies
Attorney	5.5	0
CITY CLERK	11	0
CITY MANAGER	3	1
CJC	1	0
DPW	145.65	10.65
FINANCE DEPARTMENT	14	2.5
FIRE DEPARTMENT	72	1
GIAC PROGRAM	31	3
HUMAN RESOURCES	8	3
LEGISLATIVE	10	0
MAYOR	1	0
PLANNING DEPARTMENT	31	3
POLICE DEPARTMENT	87.5	9
YOUTH PROGRAM	42.5	1.5
Grand Total	463.15	34.65
Vacancy Rate:		7.48%

MEMORANDUM

Date: April 3, 2026

To: Common Council

From: Dominick Recckio, Acting City Manager
Wendy Cole, Acting Controller

RE: Monthly Financial Report

This April 3 report is populated with up-to-date actuals from the last available full month (February, 2026).

GENERAL FUND REVENUES (THROUGH 2/28/2026)

Revenue Item	Budgeted 2026	Actual 2026	% of Budgeted Collected Through 2/28/26	Notes
Fees	\$20,810,664	\$1,164,017	6%	
Sales & Use Tax	\$19,939,500	\$1,751,670	9%	
Misc Tax	\$4,711,394	\$1,339,279	28%	Many payments in lieu of taxes (PILOTS) were received.
Property Tax	\$34,772,582	\$12.3 million	35%	Approx. Based on prior year(s) performance and receipts to date. Note: many payers use installment plans.
Interfund Trans.	\$1,815,930			
State & Fed Aid	\$3,946,081			
Total Revenues	\$85,996,151	\$16,554,966		See approx. note above

Revenue Highlights

Revenues continue to generally be on target, with some collections anticipated to increase with activity in the spring and summer months.

A detailed breakdown of Q1 parking revenues is provided in an attached memo.

GENERAL FUND EXPENSES (THROUGH 2/28/2026)

Expense Item	Budgeted 2026	Actual 2026	% Expended Through 2/28/26	Notes
Personnel	\$35,670,497	\$4,886,733	14%	

Fringe Benefits	\$25,333,035	\$2,900,845	11%	
Operating	\$15,204,568	\$1,915,721	13%	
Miscellaneous	\$3,307,054	\$463,671	14%	
Debt	\$9,627,800	\$4,145,436	43%	Payments only made ~2x/year
Total Expenses	\$89,142,954	\$14,312,406		

Expense Highlights:

Generally, expenses are on target through the end of February.

Operating expenses include utility costs, which have increased substantially through the first two months of the year. Additional analysis of utility costs and savings strategies are being conducted; Council will receive further details in May for the first quarter through March.

MOST RECENT DEBT SERVICE PAID (ALL FUNDS)

Date Paid	Debt Instrument	Principal	Interest	Total Due
2/1/2026	Public Improvement Refunding Serial Bonds	0	\$30,400	\$30,400
2/13/2026	BAN Payments	\$9,499,773*	\$1,816,455	<i>Excess payment made to continue lowering BAN load, see note (*) below. Payment is a mix of general and other funds so will not show entire amount in April report for February actuals.</i>
2/15/2026	2013A Serial Bonds	\$710,000	\$152,090	\$862,090
2/15/2026	2016 Serial Bonds	\$495,000	\$223,653	\$718,653
2/15/2026	2019 Serial Bonds	\$870,000	\$160,988	\$1,030,988
2/15/2026	2018 Serial Bonds	\$840,000	\$197,475	\$1,037,475
2/15/2026	2021A Serial Bonds	\$800,000	\$129,763	\$929,763
2/15/2026	2022 Serial Bonds	\$275,000	\$68,600	\$343,600

* This principal payment includes \$6.3 Million paid out of the capital project toward the construction of the East Hill Fire Station, with a portion of that payment being made from the sale of the former Collegetown Fire Station property.

UPCOMING 2026 DEBT OBLIGATIONS (ALL FUNDS)

Due Date	Debt Instrument	Principal	Interest	Total Due
4/1/2026	State Revolving Loan	\$80,000	\$19,039	\$99,039
4/15/2026	2016B Serial Bonds	\$600,000	\$175,013	\$775,013
7/15/2026	2017A Serial Bonds	n/a	\$21,500	\$21,500
7/15/2026	2017B Serial Bonds	n/a	\$97,292	\$97,292
7/15/2026	2019B Serial Bonds	\$285,000	\$101,553	\$386,553
7/18/26	BANS	\$434,598	\$373,308	\$807,906

Debt Obligation Highlights:

Remaining Debt Load

Activities in the Controller's Office, including those being completed by the Bonadio Group, will support more comprehensive reporting on the City of Ithaca's debt load. Today, across all funds, the City holds \$153.7 Million in both short and long-term debt (broken down below)

- Bonds: \$100,881,795
 - Inclusive of debt across all funds (General, Water, Sewer, etc.)
- Bond Anticipation Notes (BANs): \$52,865,946
 - Inclusive of debt across all funds (General, Water, Sewer, etc.), up to date through July 2025 and January 2026
 - City has relied more heavily on BANs while awaiting completed audits and re-established credit rating
 - Several recent larger projects with significant outside funding have increased BAN reliance due to need to front costs before reimbursements are received

Staff are prioritizing the collection of reimbursable outside funding to reduce BAN load over time.

The Grant Administrator is reviewing a summary list of Bond Anticipation Notes (BANs) and corresponding Capital Project budgets that have been identified as being possibly eligible for reimbursement of some kind. Next steps, include:

- Meeting with the individuals identified as the project lead for the Capital Project and/or their Department Head (especially in cases of staff turnover).
- Reviewing corresponding department's budget and documentation to confirm reimbursements were not submitted or received.
 - In cases that reimbursements were submitted and received, the Controllers Office will need to work with the Chamberlain's Office to ensure the payment was correctly recorded.
- Working with the identified project lead to request reimbursement.

While the identified Capital Projects are the priority, the Grant Administrator anticipates needing to review additional open Capital Projects for possible funding/grant reimbursement opportunities.

FUND BALANCE POSITION

There are no new updates related to the City's fund balance position, pending impending audit completion. Consultants from the Bonadio Group recently advised Common Council (dialogue on February 11) that their professional recommendation is not to budget using fund balance until this confidence is regained.

As reported in the February 4 Report to Council:

The most recent audited financial statements (2021) indicated a \$16,545,540 general fund balance with \$8,690,044 unobligated or unassigned. In the 2026 budget presentation received by Council, the Controller's Office provided an estimate of \$13.5-14 million in general fund balance as of October 2025 – this number is purely an estimate considering revenues and expenditures from 2021 audited financials and incomplete 2025 point-in-time data.

AUDIT PROGRESS

To proceed with the City of Ithaca's 2022-2025 financial audits, existing financial records and internal financial systems are being corrected and set up to be properly maintained. The Bonadio Group, an industry-leading accounting and consulting firm, has been contracted by the City to provide these services.

The request for proposals to solicit a firm to conduct the City's past-due financial audits was published on March 27. It can be found on the City website. Copies have been made available directly to competitive firms who may be interested in working with the City. Submissions are due on April 22, with an award expected on or around May 6.

MEMORANDUM

Date: April 3, 2026
To: Common Council
From: Dominick Recckio, Acting City Manager
RE: Q1 2026 Parking Revenue — Impact of Fee Increases on Actual Revenues

Executive Summary

Parking fee increases implemented in 2026 have produced encouraging revenue results. Total Q1 2026 revenue reached \$437,406 — a 57% increase over Q1 2025 (\$279,187) and a 36% increase over Q1 2024 (\$320,981). All locations reported strong growth, with Seneca Street emerging as the top performer. These results demonstrate that the fee adjustments are generating substantial new revenue while demand for parking services remains robust.

Q1 Revenue by Location* (2024–2026)

Location	2026 Q1	2025 Q1	2024 Q1
Green St	\$71,584	\$45,298	\$52,046
Seneca St	\$117,210	\$67,278	\$65,329
Dryden Rd	\$72,380	\$48,283	\$60,753
On-street Pay Stations	\$176,232	\$118,328	\$142,853
TOTALS	\$437,406	\$279,187	\$320,981

*Parking garage revenues only include hourly parking. Monthly parking pass revenue and hotel parking agreements are tracked separately.

*On-street parking revenues include ParkMobile and Pay Station revenues. Parking meter head coin revenues are tracked separately.

Year-Over-Year Change vs. 2025 and 2024

Location	vs. 2025 (\$)	vs. 2025 (%)	vs. 2024 (\$)	vs. 2024 (%)
Green St	+\$26,286	+58%	+\$19,538	+38%
Seneca St	+\$49,932	+74%	+\$51,881	+79%
Dryden Rd	+\$24,097	+50%	+\$11,627	+19%
On-street Pay Stations	+\$57,904	+49%	+\$33,379	+23%



City of Ithaca

Records and Reports

2025M-114 | March 2026

Contents

Audit Results 1

 Audit Summary 1

Records and Reports: Findings and Recommendations 3

 Finding 1 – Officials did not maintain complete and timely accounting records. 3

 Recommendations 5

 Finding 2 – The Council did not receive the financial reports needed to oversee operations. 6

 Recommendations 6

 Finding 3 – Officials did not submit AFRs in a timely manner. 7

 Recommendation. 8

 Finding 4 – The Council did not ensure timely completion of independent audits.. . . . 8

 Recommendation. 8

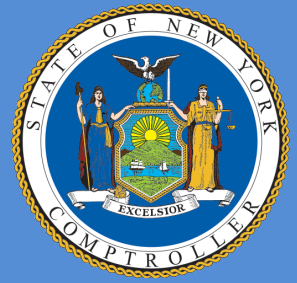
Appendix A: Profile, Criteria and Resources. 9

Appendix B: Response From City Officials 11

Appendix C: Audit Methodology and Standards. 19

Audit Results

City of Ithaca



Audit Objective

Did City of Ithaca (City) officials maintain complete, accurate and timely accounting records and reports?

Audit Period

January 1, 2023 – November 14, 2024.

We extended the audit period back to January 1, 2020 to review independent audits and financial reporting and forward to January 29, 2026 to update the City's financial reporting status and review the most recently filed independent audit report.

Understanding the Audit Area

The Common Council (Council) is responsible for managing and controlling the City's financial operations and must adequately oversee the City's financial operations to ensure that public funds are managed with accountability, transparency and integrity. Maintaining complete, accurate and timely accounting records and reports ensures appropriate information is available for City officials tasked with overseeing the use of public funds. This critical function can help maintain public trust, ensure compliance with legal requirements and prevent mismanagement, waste and fraud.

The City's 2025 general fund appropriations totaled \$85.1 million.

Audit Summary

Although transactions recorded in the accounting records and reports we reviewed were generally accurate (e.g., recorded transaction details such as payees, check numbers and amounts were correct), City officials did not maintain complete (e.g., certain transactions were not recorded) and timely accounting records and reports. In addition, we determined the City Controller's (Controller) office did not create or provide the Council with monthly reports such as budget-to-actual comparisons, cash balances or fund balance estimates and the City Manager (Manager) did not provide year-end financial reports to the Council. Furthermore, officials did not submit Annual Financial Reports (AFRs) to the Office of the State Comptroller (OSC) in accordance with New York State General Municipal Law (Law) Section 30¹ or ensure independent audits were completed in a timely manner.

¹ More information on AFR non-filers and the City's current AFR filing status can be found on OSC's website at <https://web.osc.state.ny.us/localgov/afr-non-filers/>

The lack of complete and timely monthly and annual financial reports inhibits the Council's ability to properly and effectively manage the City's financial operations throughout the year. As a result of the incomplete financial records, the Council and officials' ability to assess the City's financial standing since December 2022 and make informed financial decisions was impaired.

For example, the Finance Department's staff did not record over 4,000 transactions totaling \$10 million in a timely manner, with delays ranging from 31 to 282 days after the transaction date. Additionally, they did not record Council-authorized budget adjustments totaling over \$1 million. Furthermore, the City Chamberlain's (Chamberlain) office staff did not complete bank reconciliations in a timely manner for all City bank accounts with combined balances of approximately \$51 million as of February 28, 2025.

The report includes 11 recommendations that, if implemented, will improve the City's accounting records and reports and the Council's ability to manage the City's financial condition. City officials generally agreed with our findings and indicated they plan to initiate corrective action.

We conducted this audit pursuant to Article V, Section 1 of the State Constitution and the State Comptroller's authority as set forth in Article 3 of GML. Our methodology and standards are included in Appendix C.

The Council has the responsibility to initiate corrective action. A written corrective action plan (CAP) that addresses the findings and recommendations in this report should be prepared and provided to our office within 90 days, pursuant to Section 35 of the New York State General Municipal Law. For more information on preparing and filing your CAP, please refer to our brochure, *Responding to an OSC Audit Report*, which you received with the draft audit report. We encourage the Council to make the CAP available for public review in the City Clerk's office.

Records and Reports: Findings and Recommendations

City officials must ensure accounting records are maintained in a complete, accurate and timely manner to be relevant and useful for managing city operations. Reconciling bank account balances to general ledger cash balances allows officials to identify and research differences between the city’s accounting records and bank balances. Bank reconciliations should be prepared and independently reviewed when bank statements are available and differences should be promptly resolved.

The city controller should provide monthly financial reports to the city council summarizing financial information such as budget-to-actual comparisons of revenues and expenditures and fund balance estimates. The City’s charter requires the Manager to submit a report on the City’s finances and administrative activities to the Council within two months after the close of each calendar year.

More details on the criteria used in this report, as well as resources we make available to local officials that can help officials improve financial operations (Figure 5), are included in Appendix A.

Finding 1 – Officials did not maintain complete and timely accounting records.

The accounting records for the 2023 through 2024 calendar years were not closed, leaving officials with incomplete financial data to assess the City’s financial condition since December 31, 2022. Although transactions recorded in the accounting records were generally accurate (e.g., recorded transaction details such as payees, check numbers and amounts were correct), they were not complete (e.g., certain transactions were not recorded) and prepared in a timely manner. As a result, the Council did not have complete accounting records and, therefore, was unable to fully evaluate the City’s financial condition or make well-informed decisions.

Accounting Records – Our review of accounting transactions for 2024 (as of November 14, 2024) identified that the Finance Department’s staff did not record 4,185 transactions, totaling approximately \$10 million, within 30 days of the transaction occurring (Figure 1). The longest delay between a transaction occurring and its recording was 282 days. The total number of delayed transactions may continue to rise as the City finalizes its accounting records, increasing the risk of inaccurate or incomplete financial reporting. As a result, the City’s accounting records did not reflect current revenues, expenditures, assets, liabilities or fund balances, leaving officials without reliable monthly and annual financial information to assess the City’s financial condition.

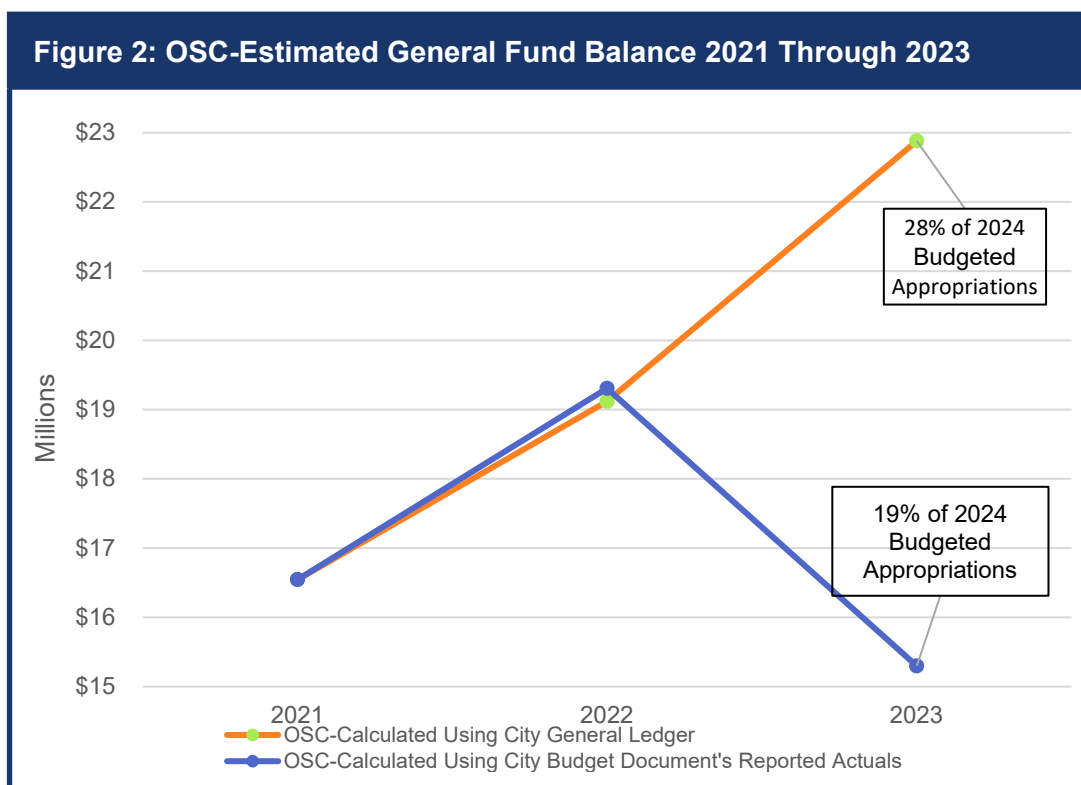
Furthermore, we compared the 2023 accounting records general ledger to budget

Figure 1: 2024 Transaction Recordings Exceeding 30 Days (as of November 14, 2024)

Days Between Transaction and Recording	Number of Transactions	Transaction Dollar Amounts
Between 31 - 60	1,158	\$2.7 million
Between 61 - 90	885	1.5 million
Between 91 - 120	1,725	1.5 million
Greater than 120	417	4.3 million
Totals	4,185	\$10 million

documents available to Council members during the 2025 budget workshops.² The 2025 budget documents included the 2023 revenues and expenditures that were different than what was recorded in the accounting records. For example, the general ledger included revenues totaling \$73 million and expenditures totaling \$69 million, while the budget documents showed revenues totaling \$71 million³ and expenditures totaling \$75 million.

We attempted to evaluate the City's financial condition by estimating general fund balance at the end of 2023.⁴ To do this, we used the total fund balance reported in the 2021 independent audit report, along with the 2022 through 2023 revenues and expenditures recorded in the City's accounting records and budget documents (Figure 2). Based on our calculation, total fund balance may have ranged from approximately \$15.3 million and \$22.9 million, equivalent to about 19 to 28 percent of the 2024 budgeted appropriations. Therefore, based on these estimates, the City would not be considered fiscally stressed. However, significant adjusting entries, that could affect fund balance levels, may be required once the independent auditors complete their audits of previous years.⁵



2 The 2025 budget documents were the first to include complete 2023 actual results, except for real property tax revenue.

3 The 2025 budget documents did not include actual results for 2023 real property tax revenue. Therefore, we used the 2023 budgeted real property tax revenue as the reported actual.

4 We did not calculate 2024 fund balance estimates because the 2024 accounting records general ledger was not complete.

5 For the status of independent audits, see Finding 4.

The acting Controller told us that staffing shortages and vacancies in the Controller’s office were to blame for not keeping accounting entries current. Without complete and timely accounting records, the Council’s ability to manage the City’s financial condition and make informed decisions is significantly limited. As a result, the transparency of the City’s financial operations is compromised, and taxpayers cannot be confident that the Council is effectively overseeing City finances and operations.

Budget Adjustments – We reviewed all 77 budgeted appropriation lines exceeding \$400,000 in 2023 and 2024 to determine whether Council-authorized budget adjustments were properly recorded in the accounting records. The Controller’s office staff did not record any of the Council-authorized budget adjustments, totaling over \$1 million across 18 expenditure lines in the accounting records. When budget adjustments are not recorded, City officials lack an accurate view of the budget and may spend more than available. The acting Controller told us that staffing shortages were to blame for not keeping budget adjustments current.

Bank Reconciliations – The Chamberlain’s office staff did not complete bank reconciliations in a timely manner for certain City bank accounts and there was no independent review process to verify their completion or accuracy. The Chamberlain’s office was responsible for reconciling 22 City bank accounts. As of February 2025, 18 bank accounts had been reconciled through the most recent period. However, according to the Chamberlain, the four remaining accounts – which required the most time to reconcile – were not up to date (Figure 3). These accounts consistently carried high balances and, therefore, were significant to the City’s financial position. As a result, timely reconciliation of these accounts is critical.

Figure 3: Unreconciled Bank Accounts as of February 28, 2025

Account	Month Last Reconciled	Balance
Operating A	December 2021	\$24,003,088
Operating B	December 2021	25,159,628
Payroll	November 2023	841,326
Joint Activity	September 2024	969,996
Totals		\$50,974,038

The Chamberlain told us that bank reconciliations fell behind due to staffing shortages and acknowledged that she had not fully considered the control benefits of independent reviews by the Manager or their designee. When bank reconciliations are not completed promptly, the Council’s ability to monitor the City’s cash position and make informed financial decisions is impaired.

Recommendations

1. The Controller (or acting Controller or Deputy Controller on their behalf) and Chamberlain should record transactions in the accounting records in a timely manner so monthly and annual financial reports are complete.
2. The Controller (or acting Controller or Deputy Controller on their behalf) should record Council-authorized budget adjustments in the accounting system in a timely manner.

-
3. The Chamberlain should prepare bank reconciliations in a timely manner.
 4. The Manager should ensure bank reconciliations are independently reviewed and approved.
 5. The Council and Manager should assess staffing needs and proactively fill key positions, if deemed necessary.

Finding 2 – The Council did not receive the financial reports needed to oversee operations.

Although the former Mayors and Manager provided the Council with budget-to-actual comparisons and, at times, fund balance estimates for prior years during budget preparation, the Council did not receive key monthly financial reports such as budget-to-actual comparisons, cash balances or fund balance estimates from 2020 through 2024. For example, from 2020 through 2023, the former Controller presented financial information to the Council verbally each month, which typically focused on major revenue sources such as building permits, fines, parking fees, sales tax and State aid. From March through August 2024, the Deputy Controller provided monthly written reports showing revenue trends for building permits, parking fees, and room occupancy and sales taxes. However, according to Council meeting minutes, no similar written or verbal revenue updates were provided for January and February 2024 or from September through December 2024. Additionally, the Manager did not submit annual financial reports to the Council for 2023 or 2024, as required by the City's charter.

The Mayor and four Council members told us they were not provided with sufficient monthly financial reports to make informed decisions. The Manager told us the City's accounting system did not generate financial reports in a readily usable format for the Council. However, the Deputy Controller provided us with a budget-to-actual comparison report from the City's accounting system, which would be a useful report for the Council. Without adequate financial reports, the Council did not have adequate financial information to effectively oversee City operations or assess the City's financial condition.

Recommendations

The Manager and Council should:

6. Ensure monthly financial reports are provided summarizing financial activities. The financial reports should include a detailed accounting of all money received and disbursed and detailed year-to-date, budget-to-actual comparisons of revenues and expenditures and fund balance estimates.

The Controller (or acting Controller or Deputy Controller on their behalf) should:

7. Create and provide monthly financial reports to the Council summarizing financial activities. The financial reports should include a detailed accounting of all money received and disbursed and detailed year-to-date, budget-to-actual comparisons of revenues and expenditures and fund balance estimates.
8. Periodically provide officials with fund balance estimates for all funds.

The Manager should:

9. Provide an annual report of financial operations to the Council, as required by the City's charter.

Finding 3 – Officials did not submit AFRs in a timely manner.

The Controller did not submit the City's AFRs to OSC on time for 2020 and 2021 and have not filed any of the last three completed years (2022 through 2024). The Deputy Controller filed the 2021 AFR on April 29, 2025, which was 1,094 days past the due date. As of January 29, 2026, the City's 2022 through 2024 AFRs remained unfiled.⁶

The Manager was unsure why the former Controller did not submit the AFRs in a timely manner but believed COVID-related furloughs in the Finance Department were a contributing factor. Additionally, the Deputy Controller told us the Finance Department waits until the City's annual independent audit is nearly completed before submitting the AFR to ensure that all adjusting entries are incorporated and the AFR is based on accurate financial information.

Had officials submitted the City's AFRs on time, OSC would have analyzed the self-reported data for fiscal stress and the City would have received a publicly released fiscal stress score and designation.⁷ Additionally, unfiled AFRs reduce transparency in the City's financial operations and limit its ability to demonstrate financial health to the Council, residents, taxpayers, OSC and other stakeholders. Also, not filing AFRs may adversely affect the decisions of debt-financing entities when evaluating loans for City projects or equipment purchases. For example, on March 19, 2024, Moody's withdrew its bond rating for the City because it indicated there was insufficient or otherwise inadequate information to support the maintenance of the rating.

6 More information on AFR non-filers and the City's current AFR filing status can be found on OSC's website at <https://web.osc.state.ny.us/localgov/afr-non-filers/>

7 The City filed the 2020 and 2021 AFRs too late to receive a fiscal stress monitoring system designation.

Recommendation

10. The Controller (or acting Controller or Deputy Controller on their behalf) should prepare and file the delinquent AFRs for 2022 through 2024, and file all subsequent AFRs with OSC within 120 days of the close of the fiscal year, as required by GML Section 30.

Finding 4 – The Council did not ensure timely completion of independent audits.

The most recent audit of the City’s financial statements by a certified public accountant (CPA) was for 2021 and was issued on June 25, 2025. The corresponding management letters for the 2020 and 2021 independent audits attributed the delayed filings to staff shortages, furloughs, COVID-19 and time-consuming atypical administrative demands within the City.

The acting Controller indicated the City had an engagement letter with a new CPA firm to audit 2022 and 2023. No other independent audit reports had been issued and there were no engagements in place for 2024 (Figure 4). The acting Controller told us independent audits were delayed because COVID-related furloughs created a backlog of work, as seen in the delayed recording of accounting transactions in the accounting records, that persists in the Finance Department.

Figure 4: Independent Audits

Calendar Year	Issue Date
2020	1/23/2023
2021	6/25/2025
2022	Not issued
2023	Not issued
2024	Not issued

By not ensuring independent audits were conducted in a timely manner, the City missed valuable opportunities to identify areas needing improvement and to strengthen oversight of its financial operations. As a result, the Council’s ability to effectively manage the City’s financial condition and make informed decisions on City operations remains limited and taxpayers lack assurance that City operations and finances are being properly monitored.

Recommendation

11. The Council should ensure that the City’s financial statements are completed in a timely manner to allow for a timely independent audit.

Appendix A: Profile, Criteria and Resources

Profile

The City is located in Tompkins County and is governed by the Council, which has the power and responsibility to adopt realistic budgets and levy taxes on real property located within the City. The Council includes 10 elected members and the Mayor. The Mayor serves as the president of the Council. The former Mayor left office on January 5, 2022. An appointed Mayor, who was later elected, served from January 5, 2022 through December 31, 2023. A newly elected Mayor took office on January 1, 2024 and served through the end of the audit period.

The Council is responsible for managing the City's financial affairs and appoints and relies on the Council-appointed Manager to keep it fully advised of the City's financial condition. The Manager serves as the City's chief executive officer and is responsible, along with other administrative staff, for the City's day-to-day management. The Manager position was created when the City changed from a mayor-council to a council-manager form of government on January 1, 2024. The Manager oversees, directs and controls the administration of all City departments, including the Controller and the Chamberlain.

The City's Finance Department is made up of the Controller's office and the Chamberlain's office. The Controller is the chief fiscal officer and is responsible, along with the Council, for preparing the annual budget and issuing debt. The Controller is also responsible for the general management and control of the City's financial affairs. The Controller's office is primarily responsible for maintaining the central accounting records (e.g., recording transactions, closing the accounting records and filing the AFR). The Controller is assisted by two deputy controllers, an administrative coordinator and a payroll coordinator. The Chamberlain is responsible for reconciling bank statements and for the custody, receipt and disbursement of City funds. The Chamberlain's office is also responsible for recording certain transactions in the accounting records related to water and tax collections. The Chamberlain is assisted by a deputy and three accounts receivable clerks.

Criteria – Records and Reports

City officials must ensure accounting records are maintained in a complete, accurate and timely manner to be relevant and useful for managing city operations. All financial transactions should be recorded promptly and within 30 days of the transaction date to maintain accurate and up-to-date financial records for effective monitoring and decision-making. Reconciling bank account balances to general ledger cash balances allows city officials to identify and research differences between the city's accounting records and bank balances. As such, bank reconciliations should be prepared and independently reviewed when bank statements are available. Any differences should be promptly resolved to ensure that financial activities are properly accounted for in a timely manner.

The city controller should provide monthly financial reports to the city council summarizing financial information such as budget-to-actual comparisons of revenues and expenditures and fund balance

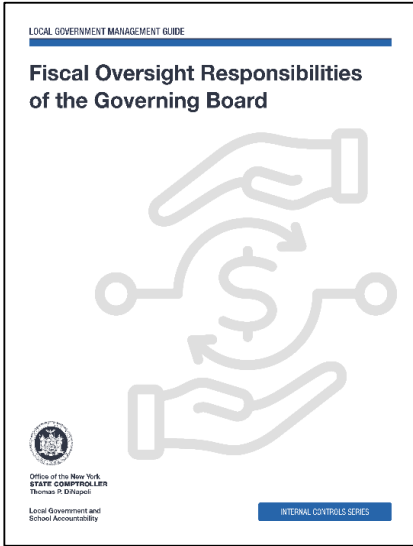
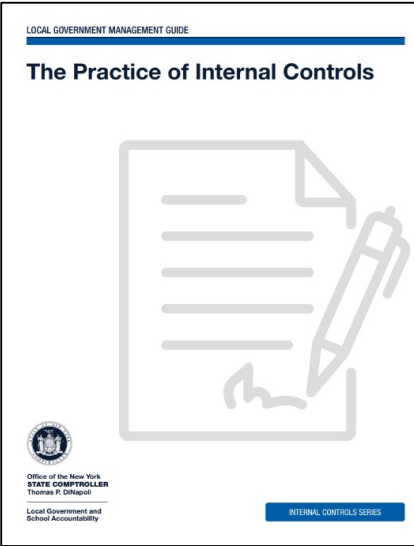
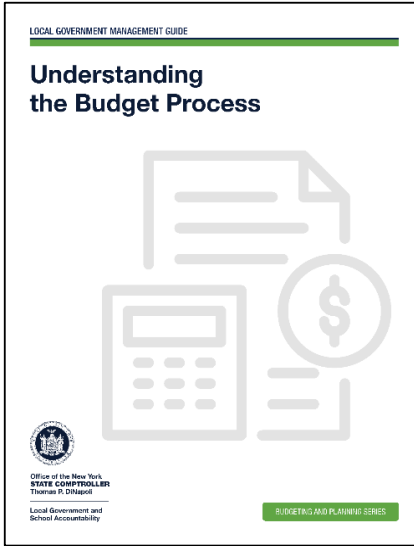
estimates. The City's charter requires the Manager to submit to the Council a report on the City's finances and administrative activities within two months after the close of each calendar year.

GML Section 30 requires cities to file an AFR with OSC no later than 120 days after the close of their fiscal year. The AFR is an important fiscal tool that provides a city council with the financial information necessary to monitor a city's operations, and it provides other interested parties with a complete summary of the city's financial activities.

A city council should ensure it engages an independent auditor to audit the city's financial statements in a timely manner because independent audits express an opinion on the fairness of a city's financial statements, can help identify conditions in need of improvement and can be a useful tool in providing oversight and review of financial operations.

Additional Records and Reports Resources

Figure 5: OSC Publications

OSC Local Government Management Guides available on our website to help officials understand and perform their responsibilities.		
<i>Fiscal Oversight Responsibilities of the Governing Board</i>	<i>The Practice of Internal Controls</i>	<i>Understanding the Budget Process</i>
 LOCAL GOVERNMENT MANAGEMENT GUIDE Fiscal Oversight Responsibilities of the Governing Board Office of the New York State Comptroller Thomas P. DiNapoli Local Government and School Accountability INTERNAL CONTROLS SERIES	 LOCAL GOVERNMENT MANAGEMENT GUIDE The Practice of Internal Controls Office of the New York State Comptroller Thomas P. DiNapoli Local Government and School Accountability INTERNAL CONTROLS SERIES	 LOCAL GOVERNMENT MANAGEMENT GUIDE Understanding the Budget Process Office of the New York State Comptroller Thomas P. DiNapoli Local Government and School Accountability BUDGET AND PLANNING SERIES
https://www.osc.ny.gov/files/local-government/publications/pdf/fiscal-oversight-responsibilities-of-the-governing-board.pdf	https://www.osc.ny.gov/files/local-government/publications/pdf/the-practice-of-internal-controls.pdf	https://www.osc.ny.gov/files/local-government/publications/pdf/understanding-the-budget-process.pdf

In addition, our website can be used to search for audits, resources, publications and training for officials: <https://www.osc.ny.gov/local-government>.

Appendix B: Response From City Officials



CITY OF ITHACA | OFFICE OF THE MAYOR

City of Ithaca

Records and Reports

Report of Examination

Audit Report Number: 2025M-114

The City of Ithaca (“the City”) agrees with the findings of the Office of the State Comptroller (“OSC”) in its 2025 Report of Examination. We believe rectifying these issues is central to the improved management and fiscal health of the City, as well as key to enhancing public trust and confidence in municipal operations.

The City anticipated the issues identified in the report. Several operational deficiencies and delays since 2020 have contributed to the issues, including:

- 2020-2022 pandemic-related staffing furloughs and constrained activity in the Controller’s Office;
- The 2023 retirement of long-standing permanent Controller, lack of adequate succession planning, and the subsequent vacancy that remains unfilled due to failed searches;
- Chronic understaffing in the Controller’s Office and previous high rate of employee turnover in the Chamberlain’s Office (which reports to the Controller) requiring frequent re-training, onboarding, and task reassignments amongst existing staff to address backlogs; and
- Delays in accomplishing annual independent audits, with the backlog caught up through 2021 as of this time.

The City is committed to getting its financial record keeping up to date as soon as possible. City staff and outside consultants have begun addressing the issues and applying corrective actions (as outlined below). Leadership has identified financial management needs as a top priority and performance measure for the Acting City Manager. The Acting Controller and existing staff continue the day-to-day financial operations of the City including obligations through payroll, accounts payable, insurance coverage, tax collection, capital projects, budgeting, union negotiations, debt service and debt obligations.

City of Ithaca 108 E. Green Street | Ithaca, NY 14850 | cityofithaca.org | mayorcantelmo@cityofithaca.org | 607.274.6501



City officials thank the auditors from OSC for their professionalism in conducting this audit. The following serves as the City's combined response and corrective action plan.

The City agrees with **Finding 1: Officials did not maintain complete and timely accounting records.** The City recognizes the importance of recording transactions in a timely and complete manner. The City has identified that ongoing staffing challenges and the resulting inability to keep up with the necessary volume of recordkeeping work created the backlog. Moving forward, the City is implementing cross training and succession planning to prevent the recurrence of these issues. In conjunction with these steps, the City will reduce its reliance on temporary staff by establishing and hiring two new permanent staff accountants. These professionals will institute improved guidance, goal setting, and accountability for Finance staff (including Chamberlain and Controller's offices) based on the outstanding deliverables. Finally, the City shall continue to reduce the use of fund balance to balance the City's annual budget until accurate and current records are available.

The City agrees with **Finding 2: The Council did not receive the financial reports needed to oversee operations.** Regular financial reporting to Common Council ceased when the permanent City Controller retired in 2023, and only six reports were delivered in 2024. Pursuant to Council resolutions adopted in November and December of 2025, the Acting City Manager and Acting City Controller resumed monthly reporting to Council in February 2026, providing pertinent information to assist the Council's decision-making. Moving forward, the City Manager, supported by the Controller, will provide an annual report as required in the City Charter. Mayor Cantelmo has established a finance advisory committee to conduct in-depth analysis of ongoing issues and works closely with the administration to ensure that timely, accurate, and regular reporting continues.

The City agrees with **Finding 3: Officials did not submit Annual Financial Reports (AFRs) in a timely manner.** The City acknowledges that State reporting is behind schedule. The City has hired [REDACTED], an accounting and consulting firm, to assist staff in organizing financial records so that it can submit its delinquent AFRs with reliable and accurate information. Prolonged annual closeouts, as well as the reporting issues



identified in Finding 1, prevented the City from submitting AFRs in the time frame required by law. The City hired [REDACTED] in part, to correct these issues as quickly as possible, while maintaining the accuracy and integrity of reporting.

The City agrees with **Finding 4: The Council did not ensure timely completion of independent audits.** The City has, to date, failed to submit required audits since 2022. As part of the work to correct the financial recordkeeping of the City, and as referenced above, the City has engaged [REDACTED] to assist with basic recordkeeping. The City, with assistance from [REDACTED] is also currently in the process of drafting a Request for Proposals (RFP) to solicit a qualified firm to carry out the overdue audits. The City Administration recognizes that the Common Council has, for some time, requested that the audits be completed.

For each recommendation included in the audit report, the following is our corrective action taken or proposed. For recommendations where corrective action has not been taken or proposed, we have included explanations.

Audit Recommendation and Implementation Plan of Action(s):

- 1. The Controller (or acting Controller or Deputy Controller on their behalf) and Chamberlain should record transactions in the accounting records in a timely manner so that monthly and annual financial reports are complete.**

Corrective Action: Reconciliations and journal entries will require a sign off by the Controller or designee. This will ensure the timely posting of transactions. This new sign-off process will require the Chamberlain's office to complete the backlog of reconciliations by the target date of March 2027 based on the following timeline and procedure:

The Chamberlain's Office is committed to reconciling past journal entries, and, monthly, will provide the Controller with verified reconciliations and entries. These monthly reports will show that the financial recordkeeping system is up to date. The Chamberlain's Office will complete and deliver the overdue 2023 bank reconciliations by the end of July 2026. The overdue 2024 bank reconciliations are scheduled to be completed and delivered to the Controller by the end of November 2026. With the additional review by the Controller, the City will promote



accountability for timely, accurate recordkeeping in both a retroactive/corrective manner and moving forward.

2. The Controller (or acting Controller or Deputy Controller on their behalf) should record Council-authorized budget adjustments in the accounting system in a timely manner.

Corrective Action: City staff have already completed adjustments through December 2024 and expect adjustments from FY 2025 to be completed by May 2026. The City hired two staff accountants in February 2026. Moving forward, the accountants will post adjustments monthly immediately following Council meetings, with a sign-off required by the Controller or their designee.

3. Chamberlain should prepare bank reconciliations in a timely manner.

Corrective Action: Per the City's corrective action described in response to Audit Recommendation 1, the City's bank reconciliations are tied to the timely recording of transactions. Timely posting of transactions and recordkeeping will enable City staff to prepare the required bank reconciliations. The increased staffing in the Controller's office will ensure these tasks are completed in a timely manner.

4. The Manager should ensure bank reconciliations are independently reviewed and approved.

Corrective Action: Per the City's corrective action described in response to Audit Recommendation 1, the Controller (or their designee) will review and sign off on all reconciliations.

5. The Council and Manager should assess staffing needs and proactively fill key positions, if deemed necessary.

Corrective Action: The City hired two new staff accountants who began in February 2026. Additionally, the City is in the process of hiring two Customer Service Representatives in the Chamberlain's office: Staff are conducting interviews for a full-time position in March 2026, and a part-time position is being re-posted in March 2026. Finally, the City has made an offer to a permanent Controller



candidate, who accepted the position (pending Council approval) with an anticipated Mid-2026 start date. The Acting City Manager will onboard the new Controller, and they will work together to identify additional staffing needs in advance of the 2027 budget. The Chamberlain has identified that adding a second fiscal manager position would aid in keeping current year record-keeping on track. The City is committed to continually evaluating staffing needs to ensure that its financial reporting obligations are faithfully kept.

- 6. The Manager and Council should ensure monthly financial reports are provided summarizing financial activities. The financial reports should include a detailed accounting of all money received and disbursed and detailed year-to-date, budget-to-actual comparisons of revenues and expenditures and fund balance estimates.**

Corrective Action: In November 2025, the Mayor authored and Council adopted a fiscal response package to address these issues. Included within that resolution that established a preliminary fund balance policy, moratorium on short-term debt for short-lived equipment, a requirement for monthly financial reporting, and an interim debt-management policy. These resolutions also directed the administration to establish permanent policies during 2026. Furthermore, on December 3, Common Council passed a resolution making monthly financial reporting part of the Acting City Manager's performance goals. More recently, the financial report delivered to Common Council at the March 4, 2026, meeting provides YTD actuals (spending and revenues) through the end of January 2026. This information builds upon a template for reporting that was initially shared with Council in February. This report will include all required details once all audits are completed. The [REDACTED] is working with the City to get all records audit-ready. [REDACTED] is assisting the City with its RFP for the 2022 audits. This RFP will be published around the end of March 2026 so that a contractor may begin making meaningful progress on the audit backlog beginning by mid-2026.

- 7. The Controller (or acting Controller or Deputy Controller on their behalf) should create and provide monthly financial reports to the Council summarizing**



financial activities. The financial reports should include a detailed accounting of all money received and disbursed and detailed year-to-date, budget-to-actual comparisons of revenues and expenditures and fund balance estimates.

Corrective Action: The financial report template created by the Acting City Manager is being completed monthly by the Acting Controller. As the backlog of audits is completed, more of the template will be populated. The Controller will post each report to the website once it's been shared with Council members each month.

8. The Controller (or acting Controller or Deputy Controller on their behalf) should periodically provide officials with fund balance estimates for all funds.

Corrective Action: In accordance with policy directives from the Mayor and Council, fund balance estimates will be listed in the monthly financial report to Common Council. Once the City's audits are complete, City officials have committed to adopting a fund balance policy that will help the City maintain financial stability and fiscal discipline and provide guidelines for both accountability and predictability.

9. The Manager should provide an annual report on financial operations to the Council, as required by the City's charter.

Corrective Action: City staff shall submit an annual report to Common Council by the beginning of Q2 each year so that all necessary financial closeouts can be completed by the Controller's office. This will also aid the annual mid-year budget kickoff presentation provided by the City Manager and Controller. Note: The annual report will consist of unaudited numbers until the audit results are available and deemed complete.

10. The Controller (or acting Controller or Deputy Controller on their behalf) should prepare and file the delinquent AFRs for 2022 through 2024 and file all subsequent AFRs with OSC within 120 days of the close of the fiscal year, as required by GML Section 30.

Corrective Action: The City shall file these AFRs once accurate numbers are available. Currently, AFRs cannot be accurately filed until the requisite adjustments and financial system repairs are complete. The City has retained [REDACTED] to conduct preparatory work for financial reporting.



11. The Council should ensure that the City’s financial statements are completed in a timely manner to allow for a timely independent audit.

Corrective Action: In late 2025, the City contracted with [REDACTED] to perform a multi-phase financial consulting project that will result in more complete, transparent, and accurate financial records. This will ensure that the City’s future financial deadlines are met. [REDACTED] staff meet weekly with staff in the Controller and Chamberlain’s offices. Additionally, the lead [REDACTED] accountant is working with the City to provide monthly updates to Common Council at the regularly scheduled Council meetings.

I am grateful to the Office of the State Comptroller for the detailed investigation, findings, and recommendations included within this report. Financial management is critical to good governance, the provision of public services, and democratic accountability. It is clear in this report that previous City leadership did not meet the high bar of excellence that the residents of Ithaca deserve. I am committed to ensuring the faithful execution of this Corrective Action Plan and look forward to working with Council and City staff to ensure the integrity, reliability, and health of City finances and services for posterity.

Sincerely,

Mayor Robert G. Cantelmo
March 20th, 2026



CITY OF ITHACA

OFFICE OF THE MAYOR

Implementation Plan of Action(s)	Implementation Date	Person(s) Responsible for Implementation
Sign off on monthly reconciliations and journal entries	In progress	Controller (sign off) Chamberlain (reconciliations and journal entries)
Post (Council-authorized) budget adjustments immediately following Council meetings;	May 2026 and monthly thereafter	Staff Accountants Controller (sign off)
Hire additional staff in the Controller's office	-Completed February 2026 (two staff accountants) -Interviewing for a FT position and posting a PT position March 2026 -New Controller anticipated start date is mid-year 2026	Controller Common Council City Manager
Submit Monthly Financial Reports to Common Council	Resolution requiring this passed in December 2025; First report delivered March 4 th , 2026	City Manager
Post Monthly Financial Reports on City website	March, 2026	Controller
Include estimated fund balances in monthly financial reports	As soon as audits are complete (in progress)	Controller
Deliver Annual Financial Operations Report to Common Council	April/May 2026	City Manager
File past due Annual Financial Reports to Office of the State Comptroller	In-progress; as soon as the audits are complete	Controller
Meet future financial deadlines in a timely manner	In-progress	City Manager

City of Ithaca 108 E. Green Street | Ithaca, NY 14850 | cityofithaca.org | mayorcantelmo@cityofithaca.org | 607.274.6501

Appendix C: Audit Methodology and Standards

We obtained an understanding of internal controls that we deemed significant within the context of the audit objective and assessed those controls. Information related to the scope of our work on internal controls, as well as the work performed in our audit procedures to achieve the audit objective and obtain valid audit evidence, included the following:

- We interviewed City officials and reviewed Council meeting minutes and the City's charter to gain an understanding of the City's internal controls, accounting practices, accounting records, policies and procedures.
- We examined the City's 2024 general ledger entries as of November 14, 2024 consisting of 106,918 entries covering approximately \$800 million and compared the transaction dates to the recording dates to calculate the number of entries posted more than 30 days after the transaction date.
- We compared the 2023 general ledger revenues and expenditures to 2023 revenues and expenditures reported in the 2025 adopted budget. We used these actuals to estimate the general fund balance for 2022 through 2023 and calculated the 2023 estimated total fund balance as a percentage of the 2024 budgeted appropriations.
- We reviewed all 77 budgeted appropriation lines exceeding \$400,000 in 2023 and 2024 to determine whether Council-authorized budget adjustments were properly recorded in the accounting records. We selected appropriation lines exceeding \$400,000 based on our determination that these lines could significantly impact the City's budget if not actively monitored and adjusted as necessary.
- We reviewed bank reconciliations for all 22 City bank accounts as of February 28, 2025 to determine whether the Chamberlain reconciled bank statements in a timely manner.
- We selected a sample of 30 months of the 66 months (45 percent) of Council meeting minutes in our audit period to determine the financial reports provided to the Council. We used our professional judgment to select months based on staffing changes within the Finance Department.
- We reviewed AFR submissions and calculated the number of days that they were late and calculated the number of days late for AFRs that were not submitted.
- We reviewed the CPA's independent audit report issued for 2020 and 2021 to document findings related to timeliness.

We conducted this performance audit in accordance with generally accepted government auditing standards (GAGAS). Those standards require that we plan and perform the audit to obtain sufficient, appropriate evidence to provide a reasonable basis for our findings and conclusions based on our audit objective. We believe that the evidence obtained provides a reasonable basis for our findings and conclusions based on our audit objective.

Unless otherwise indicated in this report, samples for testing were selected based on professional judgment, as it was not the intent to project the results onto the entire population. Where applicable, information is presented concerning the value and/or relevant population size and the sample selected for examination.

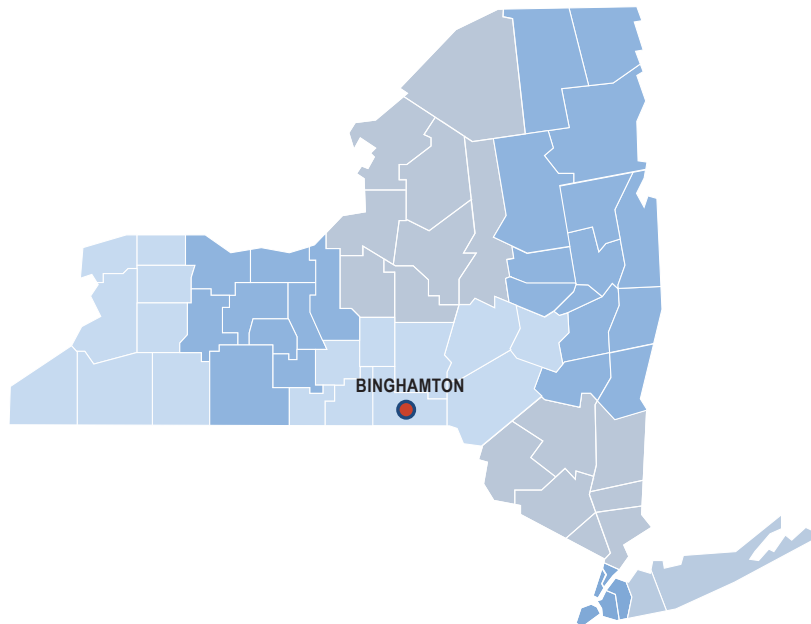
Contact

BINGHAMTON REGIONAL OFFICE – Lucas S. Armstrong, Chief of Municipal Audits

State Office Building, Suite 1702 • 44 Hawley Street • Binghamton, New York 13901-4417

Tel (607) 721-8306 • Fax (607) 721-8313 • Email: Muni-Binghamton@osc.ny.gov

Serving: Broome, Chemung, Chenango, Cortland, Delaware, Otsego, Schoharie, Tioga, Tompkins counties



Office of the New York State Comptroller
Division of Local Government and School Accountability
110 State Street, 12th Floor, Albany, New York 12236

Tel: (518) 474-4037 • Fax: (518) 486-6479 • Email: localgov@osc.ny.gov

<https://www.osc.ny.gov/local-government>

Local Government and School Accountability Help Line: (866) 321-8503



CITY OF ITHACA

108 East Green Street, Ithaca, New York 14850-6590

Attorney's Office
Shaniqua Lewis, Deputy City Clerk

MEMORANDUM

TO: COMMITTEE OF THE WHOLE MEETING B
FROM: City Manager's Office
DATE: April 22, 2026
RE: Executive Session
ITEM #: 9.1

An Executive Session to discuss the proposed acquisition, sale or lease of real property or the proposed acquisition of securities, or sale or exchange of securities held by such public body, but only when publicity would substantially affect the value thereof."